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U.S. Department of State Diplomacy in Action

Russia

Bureau of Democracy, Human Rights, and Labor

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The Russian Federation has a strong presidency with a weak multiparty political system, a government headed by a prime minister, and a bicameral legislature (Federal Assembly) consisting of a lower house (State Duma) and an upper house (Federation Council). The country had an estimated population of 141.4 million. The dominant pro-presidential United Russia party received a constitutional majority (more than two-thirds of the seats) in December 2007 State Duma elections, which, according to international observers, were not fair and failed to meet many Organization for Security and Cooperation in Europe (OSCE) and Council of Europe standards for democratic elections. Reelected in 2004, President Vladimir Putin's term expires in May 2008, and a new presidential election is scheduled for March 2, 2008. Civilian authorities generally maintained effective control of federal security forces. There were numerous reports of government and societal human rights problems and abuses during the year. Security forces reportedly engaged in killings, torture, abuse, violence, and other brutal or humiliating treatment, often with impunity. Hazing in the armed forces resulted in severe injuries and deaths. Prison conditions were harsh and frequently life threatening; law enforcement was often corrupt; and the executive branch allegedly exerted influence over judicial decisions in some high-profile cases. The government's human rights record remained poor in the North Caucasus, where the government in Chechnya forcibly reined in the Islamist insurgency that replaced the separatist insurgency in Chechnya as the main source of conflict. Government security forces were allegedly involved in unlawful killings, politically motivated abductions, and disappearances in Chechnya, Ingushetiya and elsewhere in the North Caucasus. Disappearances and kidnappings in Chechnya declined, as Chechen President Ramzan Kadyrov established authoritarian and repressive control over the republic, and federal forces withdrew. Federal and local security forces continued to act with impunity, especially in targeting families of suspected insurgents, and there were allegations that Kadyrov's private militia engaged in kidnapping and torture. In the neighboring republics of Ingushetiya and Dagestan, there was an increase in violence and abuses committed by security forces.

Government pressure continued to weaken freedom of expression and media independence, particularly of the major television networks. Unresolved killings of journalists remained a problem. The government restricted media freedom through direct ownership of media outlets, influencing the owners of major outlets, and harassing and intimidating journalists into practicing self-censorship. Local governments tried to limit freedom of assembly, and police sometimes used violence to prevent groups from engaging in peaceful protest. The government used the law on extremism to limit freedom of expression and association. Government restrictions on religious groups were a problem in some regions. There were incidents of discrimination, harassment, and violence against religious and ethnic minorities. There were some incidents of anti-Semitism.

Continuing centralization of power in the executive branch, a compliant State Duma, corruption and selectivity in enforcement of the law, media restrictions, and harassment of some NGOs eroded the government's accountability to its citizens. The government restricted opposition political parties' ability to participate in the political process. The December elections to the State Duma were marked by problems during the campaign period and on election day, which included abuse of administrative resources, media bias in favor of United Russia and President Putin, harassment of opposition parties, lack of equal opportunity for opposition in registering and conducting campaigns, and ballot fraud. The government restricted the activities of some nongovernmental organizations (NGOs), through selective application of the NGO and other laws, tax auditing, and regulations that increased the administrative burden. Authorities exhibited hostility toward, and sometimes harassed, NGOs involved in human rights monitoring. Violence against women and children and trafficking in persons were problems. Instances of forced labor were also reported. Domestic violence was widespread, and the government reported that approximately 14,000 women were killed in such violence during the year. There was widespread governmental and societal discrimination as well as racially motivated attacks against ethnic minorities and dark-skinned immigrants. There was a steady rise this year in xenophobic, racial, and ethnic attacks and hate crimes, particularly by skinheads, nationalists, and right-wing extremists.

Although there was some improvement in areas of the internal conflict in the North Caucasus, antigovernment forces continued killing and intimidating local officials. There were reports of rebel involvement in terrorist bombings and politically motivated disappearances in Chechnya, Ingushetiya, and elsewhere in the North Caucasus during the year. Some rebels were allegedly involved in kidnapping to raise funds, and there were reports that explosives improvised by rebels led to civilian casualties. Thousands of internally displaced persons (IDPs) continued to live in temporary accommodation centers in the North Caucasus; conditions in those centers reportedly failed to meet international standards.

The government improved its human rights performance in some areas, successfully prosecuting more cases; according to the NGO SOVA Center there has been an increase in convictions for each of the last three years of ethnic, racial, and religious hate crimes and mistreatment. The Defense Ministry took action to reduce the frequency and severity of hazing in the armed forces, which reportedly declined 26 percent in the first three months of the year.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Arbitrary and Unlawful Deprivation of Life

There were no confirmed reports that the government or its agents committed politically motivated killings; however, numerous disappearances in Chechnya and elsewhere in the North Caucasus, with the presumption of death, raised concern that federal and local forces continued to engage in unlawful killings as reported in previous years.

On November 22 in Serpuchov, Yuri Chervochkin, a 22-year-old activist in the National Bolshevik Party (NBP), was beaten into a coma by unknown attackers and died on December 10 without having regained consciousness. Chervochkin had participated in demonstrations (Marches of Dissenters) led by the Other Russia political opposition movement and had been arrested at least twice for political activities. He was reportedly warned by the authorities not to participate in a dissenters' march planned for November 24 in Moscow, and other NBP members claimed he was killed by government security forces.

Deaths due to hazing in the military continued to be a problem. Through the end of October, 20 military servicemen were killed in hazing incidents, according to the Ministry of Defense. In 2006, 33 servicemen were killed and 6,700 were injured in hazing incidents. Human rights observers noted that few of the accused had been prosecuted and held accountable. One exception was the October 2006 conviction of Captain Vyacheslav Nikiforov, who was sentenced by a military court to 12 years in prison for kicking to death soldier Dmitriy Panteleyev in August 2006.

On May 5, a noncommissioned officer reportedly hazed conscript Sergey Zavyalov, who later died of head injuries from the abuse. The Sertolovo Military Garrison Prosecutor's Office charged a sergeant in Zavyalov's garrison with "deliberate infliction of grave physical injuries." The case had not yet gone to trial by year's end.

On August 27, conscript Sergey Sinkonen died of severe head injuries after two inebriated officers at the Plesetsk Space Center beat him and put him in a dog cage. The Ministry of Defense investigated the incident and dismissed the base's deputy commander, who was in charge of the center at the time of the incident. In December Warrant Officer Vadim Kalinin and Captain Viktor Bal were convicted and sentenced to 14 and 11 years in prison.

In past years, Chechen rebels killed a number of federal soldiers whom they had taken prisoner; many other individuals were kidnapped and then killed in Chechnya by both federal and rebel troops, as well as by criminal elements. There were also deaths from land mines and unexploded ordnance.

There were some minor developments in high-profile killings cases from 2006.

On July 5, the government, citing constitutional restrictions, refused a request from the United Kingdom to extradite Andrey Lugovoy, a primary suspect in the November 2006 fatal poisoning, by polonium 210, of former Russian intelligence officer Aleksandr Litvinenko in London. Separate investigations into the death continued during the year in Russia and the United Kingdom. Many observers alleged the killing was politically motivated, by non-state or state actors, in part because of the highly restricted nature of the substance used to poison Litvinenko, however a link has not yet been proven. In December Lugovoy was elected to the State Duma, where he has substantial immunity from prosecution in Russia.

On June 9, the trial of five suspects began for the October 2006 killing of Dalnegorsk mayoral candidate Dmitriy Fotyanov. Fotyanov was allegedly killed because his election would have threatened the suspects' business interests. The jury trial was ongoing as of year's end.

In December investigators concluded their preliminary investigation into the September 2006 killing of banking reform advocate, Central Bank Deputy Chairman Andrey Kozlov. The former chairman of the board of directors of VIP Holding, Aleksey Frenkel, was charged with ordering the killing in revenge for Kozlov's decision to revoke the license of VIP Holding. An accomplice and the alleged hitmen have also been charged, and the trial was expected to begin in early 2008.

There were no developments reported in the investigation into the October 2006 killing of Aleksandr Plokhin, a branch director of VneshTorgBank, the November 2006 killing of Konstantin Meshcheryakov, coowner of Spetssetstroibank, or the 2005 assassination of Zagir Arukhov, Dagestan's minister of nationality policy, and none were expected.

b. Disappearance

During the year there were reports of disappearances, some of which were alleged to be politically motivated and involved federal or local governments, throughout the North Caucasus in connection with the conflict in Chechnya. There were no reports of political disappearances outside of this region in the country. The NGO Memorial reported 75 disappearances--25 in Chechnya, 22 in Ingushetiya, 22 in Dagestan, and six in North Ossetiya--during the first eight months of the year; in most cases, government forces involved in disappearances acted with impunity. Criminal groups in the region, possibly with links to rebel forces, frequently resorted to kidnapping (see section 1.g.).

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The law prohibits such practices; however, there were credible reports that law enforcement personnel engaged in torture, abuse, and violence to coerce confessions from suspects and allegations that the government did not consistently hold officials accountable for such actions. During the year there were reports of torture and other cruel, inhuman, or degrading treatment or punishment by federal or local government security forces in connection with the conflict in Chechnya.

Although prohibited in the constitution, torture is not defined in the law or the criminal code. As a result, the only accusation prosecutors could bring against police suspected of such behavior was that they exceeded their authority or committed a simple assault.

Cases of physical abuse by police officers usually occurred within the first few hours or days of arrest. Some of the methods reportedly used were: beatings with fists, batons, or other objects; asphyxiation using gas masks or bags (at times filled with mace); electric shocks; or suspension by body parts (for example, suspending a victim from the wrists, which were tied together behind the back). A Muslim prisoner alleged that an interior ministry officer pulled parts of his beard out and forced vodka down his throat. Allegations of abuse were difficult to substantiate because of limited access to medical professionals. According to the annual report of the country's human rights ombudsman published in February, the majority of police brutality cases in 2006 were reported in Komi and Mordoviya republics, Krasnoyarsk Kray, Amur, Kirov, Sverdlov, and Tyumen regions. A November 2006 report by Amnesty International documented 114 cases of alleged torture by police to obtain confessions.

In 2006 the human rights ombudsman received approximately 3,000 complaints about abuses in jails and prisons. The ombudsman's office determined that half merited investigation, but were only able to adequately investigate 123 cases due to obstruction by prison officials.

In March the European Court of Human Rights (ECHR) ruled that the government had violated the rights of Andrey Frolov through inhumane prison conditions. Frolov, who has been imprisoned in St. Petersburg since 1999, had protested the prison overcrowding and testified that he and 15 other prisoners had to take shifts sleeping because they shared a cell designed to hold eight persons.

In 2006 four suspects under detention in a murder investigation in the town of Birsik, Bashkortostan, were beaten by police until they confessed. All charges against the four were dropped when a local human rights group and independent newspaper publicized the case.

In July a Moscow district court began hearings in the case of Dmitriy Noskov, who claimed that police tortured him in 2004 to coerce him into confessing to a robbery. Doctors who examined him documented a concussion and extensive injuries.

Reports by refugees, NGOs, and the press suggested a pattern of police beatings, arrests, and extortion directed at persons with dark skin or who appeared to be of Caucasus, Central Asian, African, or Roma ethnicity.

Trials began in September against eight policemen charged with beating 32 persons during the 2004 "crime prevention" crackdown in Blagoveshchensk. The accused were mostly junior officers of the town police and the Bashkortostan OMON (a special police detachment). The highest ranking defendants were Lieutenant Colonel Ildar Ramazanov, head of the Blagoveshchensk town police and the OMON unit commander. The cases were pending at year's end.

There were a limited number of cases reported where psychiatry was used against those dissatisfied with the authorities, according to the Russian Research Center for Human Rights. There was some indication that psychiatry was being used as a tool in the resolution of inheritance, business, and property disputes. The government's and courts' interpretation of the law resulted in a monopoly by government consultants in the provision of expert testimony in court cases. The exclusion of testimony by nongovernmental expert psychiatric witnesses left plaintiffs desiring a second opinion with no recourse, and has allegedly led to corruption and bribery. The human rights ombudsman's office has an experts' council that engaged in some cases to assist persons who were treated improperly by the courts.

In July human rights and opposition activist Larissa Arap was involuntarily confined to a psychiatric hospital in Apatity, reportedly in revenge for her published critical comments about the facility in an earlier confinement. She alleged that hospital staff abused her during her involuntary confinement. A team of independent psychiatric experts assembled by the human

rights ombudsman examined Arap and advocated for her release in an August court hearing, testifying that psychiatric hospitalization was not necessary. The court deferred to the hospital's judgment, and the hospital released Arap 10 days after the court hearing. Arap's legal challenge of her hospitalization was rejected by the courts.

In August a Novosibirsk regional court ruled that NBP member Nikolay Baluyev should undergo psychiatric treatment. Baluyev was accused of conspiring to commit a terrorist act and of keeping a weapon.

On December 6, a court ordered the release of Andrey Novikov, a reporter for *Chechen Press* online, after having spent 10 months in a Yaroslavl psychiatric hospital. Novikov was convicted in December 2006 on charges of sedition and inciting violence and, on February 14, ordered committed to a psychiatric hospital. Novikov had written articles critical of the military campaign in Chechnya.

On November 23, a day before a planned Other Russia demonstration, Artem Basyrov, an Other Russia activist, was involuntarily hospitalized in a Mari El Republic psychiatric hospital. On December 25, the Mari El Hospital commission released Basyrov. Basyrov claimed that his hospitalization was politically motivated.

Various abuses against military servicemen continued, including but not limited to the violent hazing of junior recruits (known as "dedovshchina") in the armed forces and security services. Such mistreatment often included beatings or threats of increased hazing to extort money or material goods. Cases were usually investigated only following pressure from family members or the media.

According to the Office of the Military Prosecutor, the number of hazing incidents in the army decreased by about 26 percent during the first three months of the year, compared to the same period in 2006. During the period January-March, 944 servicemen were reportedly victims of hazing (compared to 1,245 servicemen in 2006) and one serviceman died after being beaten. As of June, 8,097 crimes and incidents occurred in the army and six deaths from hazing have been reported. The defense ministry reported 417 noncombat deaths in the armed forces during the year, 208 of which were recorded as suicides. In March 2006 the Council of Europe reported that hazing led to deaths every year among young conscripts. Between 50 and 80 percent of all conscripts and young servicemen were reportedly subjected to physical violence, initiation rites, beatings, rape, or humiliation on the orders of superiors or their peers.

Regional Committees of Soldiers Mothers received a total of 3,500 complaints from 20 regions across the country. The complaints from soldiers and parents mostly related to beatings, but also concerned sexual abuse, torture, and enslavement. Soldiers often did not report hazing to either unit officers or military prosecutors due to fear of reprisals, since in some cases officers allegedly tolerated or even encouraged hazing as a means of controlling their units. Officers reportedly also used beatings to discipline soldiers.

On July 7, drill sergeant Peter Tarasov severely beat conscript Artem Kaznacheyev in the presence of 170 other soldiers for failing to adequately perform morning exercises. Kaznacheyev spent two weeks in a coma, had two operations, and suffered severe damage to his lungs, liver, and other internal organs. Kaznacheyev is recovering and was dismissed from the army for medical reasons. Tarasov was arrested and was awaiting trial at year's end.

There were no developments in the severe hazing in 2005 of three recruits--Anton Afanasyev, Yuriy Afanassenko, and Aleksandr Laptev--at Yekaterinburg's military base No. 32.

There was evidence that the military was attempting to deal with its abuse problems. Between January and August, approximately 1,700 officers and 2,455 servicemen were convicted of various crimes, most commonly abuse or physical assault, but continued serving in the army, according to the Federation Council Committee on Defense and Security. A series of high-profile demotions, firings, and prosecutions were also made in response to a number of hazing incidents in Primorye in 2006. During the year, after numerous media reports detailed how soldiers in Primorye's Pogranichniy region were being

mistreated and extorted, allegedly with the consent of officers, the Ministry of Defense sent a team from Moscow to investigate. Hazing reportedly continued to be a serious problem in units that had previously served in areas of military conflict.

In February a military court sentenced Private Yevgeniy Yegorov to five years in prison and Corporal Aleksey Vinikaynen to three-and-a-half years in prison for participating in more than 15 hazing incidents between fall 2005 and summer 2006. The two served in an elite division of the interior troops.

On September 26, in the high-profile 2005 case of private Andrey Sychoy, who was beaten so badly he had to have his legs and genitals amputated, a Chelyabinsk military court sentenced Corporal Aleksandr Sivyakov to four years in prison. Sivyakov was stripped of his rank, banned from holding a command position for three years, and fined \$825 (22,000 rubles). Two codefendants in the trial, privates Pavel Kuzmenko and Gennadiy Bilimovich, were convicted of hazing a soldier of equal rank and given suspended sentences of 18 months and a year of probation.

Former defense minister and current first deputy prime minister, Sergey Ivanov, ordered parent committees to be embedded in the army and in drafting commissions. As of April 27, 2,661 parent committees have been active in the army and 81 in the drafting commissions.

Although in 2006 President Putin ordered the Ministry of Defense to create a military police force to end hazing and fight criminal activity in the armed forces, the defense ministry this year cancelled plans to create this police force.

Prison and Detention Center Conditions

Prison conditions remained extremely harsh and frequently life threatening. The Ministry of Justice's Federal Service for the Execution of Sentences (FSIN) administered most of the penitentiary system centrally from Moscow. In April 2006 the State Duma passed a law prohibiting the Federal Security Service (FSB) from operating prisons and transferred all FSB prisons to the Ministry of Justice. There were five basic forms of custody facilities in the criminal justice system: police temporary detention centers; pretrial detention facilities (SIZOs); correctional labor colonies (ITKs); prisons designated for those who violate ITK rules; and educational labor colonies (VTKs) for juveniles. In most cases juveniles were held separately from adults.

As of July 1, 889,600 persons were in the custody of the criminal justice system, an increase of 101,000 since July 2005. Among them were 12,100 juveniles and 63,000 women. The number of juveniles decreased from 14,500 two years ago, while the number of female inmates increased from 48,000.

According to official statistics, approximately 2,000 persons died in SIZOs in 2004, the most recent year for which data was available. According to the FSIN, in 2005 the mortality rate among inmates increased 12 percent. Most died as a result of poor sanitary conditions or lack of medical care (the leading cause of death was heart disease). The press reported that individuals were mistreated, injured, or killed in various SIZOs. Some of the reported cases suggested habitual abuse by officers. Inmates in the prison system often suffered from inadequate medical care, and the numbers of inmates infected with tuberculosis and HIV increased. According to FSIN data, approximately half of all prisoners had mental disorders, one of every 15 prisoners had tuberculosis, and one in 25 was HIV-positive. Tuberculosis infection rates were far higher in detention facilities than in the population at large.

Abuse of prisoners by other prisoners continued to be a problem. Violence among inmates, including beatings and rape, was common. There were elaborate inmate-enforced caste systems in which informers, homosexuals, rapists, prison rape victims, child molesters, and others were considered to be "untouchable" and were treated harshly, with little or no protection provided by prison authorities.

Penal institutions remained overcrowded, but there were reports of some improvements. Federal standards call for a minimum of four square meters per inmate. By the end of 2006, only 48 percent of the SIZOs met or exceeded this minimum standard.

Conditions in SIZO pretrial facilities--where suspects are held until the completion of a criminal investigation, trial, sentencing, or appeal--remained extremely harsh and posed a serious threat to health and life. Conditions within different SIZOs varied considerably. Health, nutrition, and sanitation standards remained low due to a lack of funding. Poor ventilation was thought to contribute to cardiac problems and lowered resistance to disease. Overcrowding was common, and the Federal Prison Service reported that approximately 158,000 suspects were being held in pretrial detention facilities designed to house 130,000.

Most convicts were imprisoned in ITKs. At year's end there were 719,600 inmates in 766 ITKs. These facilities provided greater freedom of movement than SIZOs; however, at times, guards humiliated, beat, and starved prisoners. The country's prisons, distinct from ITKs, were penitentiary institutions for those who repeatedly violate the rules in ITKs.

By year's end, 62 VTKs held 10,700 prisoners from 14 to 20 years of age. Conditions in the VTKs were significantly better than in the ITKs, but some juveniles in the VTKs and juvenile SIZO cells reportedly suffered from beatings and rape. While juveniles were generally held separately from adults, there were two prisons in Moscow and one in St. Petersburg where children and adults were not separated. Schooling in the prisons for juveniles was reportedly mandatory through a high-school graduation.

According to the NGO For Human Rights, prison officials did not allow human rights observers or defense attorneys to enter the 41 of 765 prisons with the worst records of abuse, such as torture or collective punishment.

In August the Foundation for Prisoners Rights Defense reported several riots in ITKs in Sverdlovsk region, one involving about 700 prisoners that resulted in 18 seriously injured persons. The Federal Service for Execution of Punishment denied there had been a riot and claimed there had only been a fight between two inmates. The Foundation for Prisoners Rights also reported an August riot among 100 prisoners in the juvenile colony near Kirovograd. Official reports claimed 40 prisoners were involved. In September there was a riot in St. Petersburg's Kresty prison.

In 2006 the human rights ombudsman investigated 2,966 of the 3,036 complaints it received from prisoners. In 2006 the General Prosecutor's Office found grounds to investigate 2,200 of the 40,000 complaints it received from prisoners.

According to the general prosecutors' office, over 8,000 employees in the criminal system were held responsible for various violations in 2006.

Since 2004 authorities have refused to grant the International Committee of the Red Cross (ICRC) access, under ICRC's standard criteria, to those detained as part of the conflict in Chechnya, and the ICRC subsequently was forced to suspend its detention visits.

d. Arbitrary Arrest or Detention

The law prohibits arbitrary arrest and detention; however, in practice they remained problems.

Role of the Police and Security Apparatus

The Ministry of Internal Affairs, FSB, and the Office of the Prosecutor General are responsible for law enforcement at all levels of government. The FSB's core responsibilities are security, counterintelligence, and counterterrorism, but it also has broader law enforcement functions, including fighting crime and corruption. The FSB operated with limited oversight by the prosecutor general and the courts.

The national police force, which falls under the Ministry of Internal Affairs, is organized on federal, regional, and local levels. Although regulations and national laws prohibit corrupt activities, corruption was widespread, and there were few crackdowns on illegal police activity.

There have been some significant prosecutions of corrupt police officers. For example, prosecutors continue to pursue the "Werewolves in Uniform," a case involving police officers within the Ministry of Internal Affairs who used their official positions to engage in criminal activity. In 2006 the leader of the group and six other officers were convicted of charges that included extortion, bribery, and trafficking in drugs and weapons. They were sentenced to terms ranging from 15 to 20 years. Four other members of the group were still being tried.

According to the Moscow prosecutor's office, 77 police officers were prosecuted and 1,692 disciplined in Moscow during the first six months of the year.

According to the internal security department of the Ministry of Internal Affairs, the number of police officers prosecuted and or disciplined increased by approximately 15 percent. The most common crimes committed by police officers were abuse of authority, exceeding authority, bribery, and fraud.

Although government agencies such as the Ministry of Internal Affairs continued to educate officers about safeguarding human rights, the security forces remained largely unreformed.

Arrest and Detention

By law, an individual may be taken into custody for 48 hours without court approval if arrested at the scene of a crime, provided there is evidence of the crime committed or a witness. Otherwise a court-approved arrest warrant is required. After arrest, detainees are typically taken to the nearest police station where they are informed of their rights. The police are obliged to write an official protocol, signed by the detainee and the police officer within three hours of detention, which states the grounds for the detention. Police must interrogate the detainee within the first 24 hours. Prior to the interrogation, the detainee has the right to meet with an attorney for two hours. No later than 12 hours after detention, police must notify the prosecutor and the detainee's relatives about the detention unless a prosecutor issues a warrant to keep the detention secret. Police must release the detainee after 48 hours, subject to bail conditions, unless a court decides to keep the person in custody in response to a motion filed by police no later than eight hours before the expiration of the 48-hour detention period. The defendant and his or her attorney must be present at the court hearing. By law, within two months of a suspect's arrest, police must complete their investigation and transfer the file to the prosecutor for arraignment, although a court may extend the criminal investigation for up to six months in cases classified as complex. With the personal approval of the prosecutor general, a judge may extend that period up to 18 months.

Legal limitations on detention were generally respected; however, there were reports of occasional violations of the 48-hour time limit following an arrest. Frequently, authorities failed to write the official protocol of detention within three hours after the actual detention and held suspects in excess of detention limits. In addition there were reports that police obtained defense counsels friendly to the prosecution. These "pocket" defense counsels allowed interrogation of their clients. The general ignorance of legal rights by both defendants and their defense counsels contributed to the persistence of these violations.

Judges occasionally suppressed confessions of suspects whose confessions were taken without a lawyer present. They also freed suspects who were held in excess of detention limits, although they usually granted prosecutors' motions to extend the detention period for good cause. The Supreme Court overturned a number of cases in which lower court judges granted permission to detain individuals on what the Supreme Court deemed inadequate grounds.

Authorities selectively detained and prosecuted members of the political opposition. Some observers considered the 2003 arrest on fraud charges, and additional charges of money laundering during the year, of prominent and politically active businessman Mikhail Khodorkovskiy and the 2004 arrest on fraud charges of Yukos Oil Company lawyer Svetlana Bakhmina

to constitute possible cases of selective arrest and prosecution with political motives, regardless of their guilt or innocence on the specific charges against them (see sections 1.e. and 2.b.).

Amnesty

In July 2006, following the death of terrorist warlord Shamil Basayev, the government issued a partial amnesty for militants who surrendered by January 15. The amnesty did not apply to militants suspected of crimes such as rape, murder, or terrorism. The amnesty also applied to servicemen, with the exception of those accused of selling or stealing weapons. According to the FSB, 546 militants surrendered during the designated period. On June 15, in a media announcement, Chechnya President Kadyrov rejected any further amnesty opportunities for those who had not surrendered.

e. Denial of Fair Public Trial

The law provides for an independent judiciary; however the judicial branch did not consistently act as an effective counterweight to other branches of the government.

The law requires judicial approval of arrest warrants, searches, seizures, and detentions. Judges allegedly remained subject to influence from the executive, military, and security forces, particularly in high profile or politically sensitive cases, in making decisions.

In May the government enacted a law that substantially reduced prosecutorial oversight of criminal investigations and transferred investigative authority over many serious cases from the general procuracy to a new body called the Investigation Committee. The investigation committee is formally part of the General Procuracy but its chief is appointed directly by the president, not by the general prosecutor, and it therefore operates largely independently of the General Procuracy.

Beginning in September, investigators no longer needed prosecutorial approval to open criminal investigations.

In 2006 the government increased judges' salaries by nearly 40 percent in an effort to combat corruption. However, there were continued reports of judges being bribed by officials and others. During the first six months of 2006, the Supreme Qualifying Collegium of Judges reported that 39 judges were removed from the bench and 151 were given warnings. Authorities did not provide adequate protection from intimidation or threats from powerful criminal defendants.

The judiciary is divided into three branches. The courts of general jurisdiction, including military courts, are subordinated to the Supreme Court. These courts hear civil and criminal cases and include district courts, which serve every urban and rural district, regional courts, and the Supreme Court. Decisions of the lower trial courts can be appealed only to the immediately superior court unless a constitutional issue is involved. An arbitration (commercial) court system under the High Court of Arbitration constitutes a second branch of the judicial system. Arbitration courts hear cases involving business disputes between legal entities and between legal entities and the state. The Federal Constitutional Court (as well as constitutional courts in a number of administrative entities) constitutes the third branch.

The president approves judges after they have been nominated by the qualifying collegia, which are assemblies of judges and some members of the public. After a three-year period, the president must reconfirm the judges. Judicial watchers have alleged that the executive's role in approving and reconfirming judges has ensured an increasingly progovernment judiciary. The collegia also have the authority to remove judges for misbehavior and to approve prosecutors' requests to prosecute judges.

Justices of the peace deal with criminal cases involving maximum sentences of less than three years and with some civil cases. Justices of the peace work in all regions except Chechnya.

Trial Procedures

Trials typically are conducted before a judge without a jury. The defendant is presumed innocent. The defense is not required to present evidence and is given an opportunity to cross-examine witnesses and call defense witnesses. Defendants who are in custody during the trial are confined to a caged area and must consult with their attorneys through the bars. Defendants have the right of appeal.

In 2006 the percentage of convictions increased by 4 percent to 70 percent of all criminal cases heard by courts. The acquittal rate increased slightly to 0.9 percent. Courts dismissed 30 percent of criminal cases during trial. According to Supreme Court statistics, during the first six months of 2006, the percentage of convictions in criminal cases increased by approximately 4.7 percent in comparison to the same period in 2005. The percentage of cases dismissed also increased by approximately 2 percent.

The law provides for the use of jury trials for a limited category of "especially grave" crimes, such as murder, in higher-level regional courts. In 2006 out of 1,224,431 persons tried by criminal courts, 1,320 persons were tried by jury. By January 1, all regions except Chechnya implemented jury trials as a result of a law passed by the State Duma during the year. In contrast to trials conducted by a judge, less than 1 percent of which ended in acquittal in 2006, approximately 18 percent of cases tried by juries ended in acquittals, although one-third of those acquittals were later reversed on appeal by the Supreme Court. The professional competence of jury trial participants, including both parties and, to some extent, judges, remained an issue of serious concern to domestic and international observers.

Prior to trial defendants are provided a copy of their indictment, which describes the charges in detail. They are also given an opportunity to review the criminal file following the completion of the criminal investigation. Defense attorneys are allowed to visit their clients in detention, although conditions reportedly made it difficult for attorneys to conduct meaningful and confidential consultations with their clients.

The law provides for the appointment of a lawyer free of charge if a suspect cannot afford one; however, this provision was often ignored in practice. The high cost of competent legal services meant that lower-income defendants often lacked competent representation. There were few defense attorneys in remote areas of the country. Public centers, staffed on a part time basis by lawyers, continued to offer free advice on legal rights and recourse under the law; however, they were not permitted to handle individual cases.

The federal government funds a limited experimental system of legal assistance for indigent persons in ten regions.

According to the NGO Independent Council of Legal Expertise, defense lawyers were the targets of police harassment. Professional associations at federal and local levels reported police efforts to intimidate attorneys and cover up their own criminal activities.

Authorities abrogated due process in continuing to pursue espionage cases involving persons, including foreigners who allegedly obtained information considered sensitive by security services. In some instances prosecutors pursued such cases after earlier courts had rejected them. The proceedings in some of these cases took place behind closed doors, and the defendants and their attorneys encountered difficulties in learning the details of the charges. Some human rights observers contend that the FSB sought to discourage citizens and foreigners from investigating problems that the security services considered sensitive.

The FSB insisted on a closed trial for Oskar Kaibyshev, the former director of the Institute for Metal Superplasticity Problems, who was convicted in August 2006 of unsanctioned export of technologies to South Korea citing security reasons. Kaibyshev was convicted and given a suspended prison sentence of six years and was banned from holding senior positions in state organizations for three years.

Human rights organizations and activists have identified various individuals as political prisoners: Zara Murtazaliyeva, Valentin Danilov, Igor Sutyagin, Mikhail Khodorkovskiy, Platon Lebedev, and Svetlana Bakhmina. All remained imprisoned at the end of the year. Mikhail Trepashkin, previously identified by some observers as a political prisoner, was released this year.

Zara Murtazaliyeva of Chechnya was convicted in 2005 of preparing to carry out a terrorist attack in Moscow in 2004. She was sentenced to nine years in a general regime prison. Murtazaliyeva's defense lawyers and human rights defenders who monitored her trial maintain that the charges against her were fabricated, and some considered her a political prisoner. The defense lawyers appealed the verdict to the Presidium of the Supreme Court and also filed an appeal to the European Court of Human Rights (ECHR) in September 2005. The appeal was pending and Murtazaliyeva remains in prison.

Valentin Danilov was serving a 13-year sentence for allegedly transferring classified technology to China. Colleagues and supporters asserted that the information in question was declassified over a decade ago, leading some human rights organizations to consider Danilov's case to be politically motivated. In 2004 the Supreme Court overturned a 2003 jury acquittal, and Danilov was retried by a judge and convicted. Danilov has appealed to the ECHR, and in January 2006 Danilov's defense appealed the verdict to the Presidium of the Supreme Court. Neither court had responded to the appeals by the end of this year. Danilov also applied for a pardon, but on June 7, the Presidential Pardon Commission declined to pardon Danilov because he had not admitted his guilt.

Igor Sutyagin, a disarmament researcher with the Institute for U.S. and Canadian Studies of the Russian Academy of Sciences, was convicted in 2004 on espionage-related charges and was serving a 15-year sentence in a maximum security prison for allegedly passing classified information about Russia's nuclear weapons to a London-based firm. Sutyagin and human rights groups claimed that he had no access to classified information, and that the government sought a severe sentence to discourage others from sharing sensitive information with other countries. Amnesty International has deemed Sutyagin a political prisoner, and other domestic and international human rights groups raised concerns that the charges were politically motivated and that there were problems in the conduct of the trial and the lengthy sentence. In 2005 Sutyagin was transferred to a colony in Arkhangelsk Oblast, which was further from his family than his previous detention place in Udmurtiya. Sutyagin appealed to the Supreme Court and the ECHR in 2006; the appeals were pending at the end of the year. On April 19, the Parliamentary Assembly of the Council of Europe passed a resolution urging Russia to release Sutyagin. In June the Presidential Pardon Commission declined to pardon Sutyagin because he had not admitted guilt.

Mikhail Khodorkovskiy and codefendant Platon Lebedev were serving eight-year prison sentences following their 2005 convictions for fraud, tax evasion, and embezzlement. Some human rights activists objected to sentencing both men to prisons that were not in the area where they lived or were sentenced. In October 2005 authorities transferred Khodorkovskiy to a prison in Chita Oblast (3,000 miles from Moscow) and Lebedev to a prison north of the Arctic Circle, more than 1,200 miles from Moscow. In December 2005 Lebedev's defense team filed an appeal stating that sending him to a prison not in the area where Lebedev lived or was sentenced violated Russian law. The Moscow City Court has rejected all appeals to review the case against Khodorkovskiy. In November 2006 the Supreme Court refused to proceed with Khodorkovskiy's appeal. Both were transferred to the detention center in Chita in December 2006 due to new investigation activities being conducted. Khodorkovskiy's and Lebedev's appeals of their convictions in Russian courts were rejected in November and were pending at the ECHR as of year's end. The arrest and conviction of Khodorkovskiy raised concerns about the right to due process and the rule of law, including the independence of courts and the lack of a predictable tax regime. Many observers believed that Khodorkovskiy's conviction was one of a number of politically motivated moves against wealthy "oligarchs" who represented centers of actual or potential political and media opposition to President Putin. Some observers believed that, despite the possibility that the charges against Khodorkovskiy may have had some merit, he was selectively targeted for prosecution because of his politically oriented activities and as a warning to other oligarchs against involvement in political or civil society issues or providing financial support to independent civil society.

In February the General Procuracy brought new charges of embezzlement and money laundering against Khodorkovskiy and Lebedev. A conviction on the new charges could extend their imprisonment up to 15 years. The case remained in the pretrial stage at year's end. On December 24, the Supreme Court overturned lower court decisions and ruled that the new trial could

be held in Chita instead of Moscow.

In June the Moscow Prosecutor General's office, citing violations of professional ethics, attempted to have one of Khodorkovskiy's lawyers, Karina Moskalenko, disbarred. The Moscow Bar Association considered the charges, but found her behavior and work to be within the law and rejected the prosecutor's application.

In April Svetlana Bakhmina, a lawyer who had worked for Yukos Oil Company (Yukos), was sentenced to six-and-a-half years in prison on embezzlement charges linked to the Khodorkovskiy case. Some human rights groups consider Bakhmina a political prisoner. Several organizations expressed concern about reports regarding Bakhmina's lack of access to her family and medical treatment while in custody. Some observers claimed that she was being held in an attempt to pressure Dmitry Gololobov, her former boss at Yukos, to return from London. In September 2006 Bakhmina's lawyers requested the court postpone the imposition of her sentence until her youngest child turned 14; Bakhmina's youngest child was five years old, and the law allows for applications to delay sentencing in such cases. On October 2, the Simonovsky court in Moscow rejected the request and sent Bakhmina to a women's penal colony in the central part of the country. Many observers saw the treatment of Bakhmina as politically motivated.

In May 2006 Ernest Bakhshetsyan, head of the Russian Customs Service in the Far East, was charged with abuse of office. Observers believed that the charges were fabricated by local businessmen who were threatened by Bakhshetsyan's crackdown on smuggling. Bakhshetsyan remains in custody. His trial began on October 29 and was pending at year's end.

Mikhail Trepashkin was released on November 30 after serving his four-year prison sentence for charges of disclosing state secrets. Amnesty International and some Russian human rights activists considered Trepashkin to be a political prisoner. Trepashkin was tried in 2004 following publication of his claims that the FSB was responsible for a series of Moscow apartment bombings in 1999. Human rights activists expressed concern that the Trepashkin case reflected FSB manipulation of due process and an arbitrary use of the judicial system. The government investigation alleged Chechen terrorists were responsible for the bombings, and the government cited these bombings as partial justification for the government's resumption of the armed conflict against Chechen fighters. Trepashkin, a former FSB official, was a consultant to a Russian parliamentary commission investigating possible FSB involvement in the bombings. Trepashkin's arrest came a month after his charges were published and one week before he was scheduled to represent in court the relatives of a victim of one of the bombings. Following a series of appeals contesting his sentence and his prison conditions, including the denial of proper medical care for severe asthma, prison authorities instead transferred Trepashkin from a prison settlement to a harsher general regime prison. Trepashkin appealed his transfer. On July 19, the ECHR ruled that the government had violated Article 3 (inhumane or degrading treatment) of the European Convention on Human Rights due to the poor prison conditions in which he was held at the end of 2003.

Civil Procedures

The criminal procedure code provides that an individual or business may seek civil compensation for a criminal violation. The law clearly provides for bringing a criminal or civil case on human rights violations, but implementation was inconsistent.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The law allows officials to enter a private residence only in cases prescribed by federal law or on the basis of a judicial decision. Authorities did not always observe these provisions in practice. The law permits the government to monitor correspondence, telephone conversations, and other means of communication only with a warrant and prohibits the collection, storage, utilization, and dissemination of information about a person's private life without his or her consent. While these provisions were generally followed, problems remained. There were allegations of electronic surveillance by government officials and others without judicial permission, and of entry into residences and other premises without warrants by Moscow law enforcement. Late in the year, prosecutors brought several cases against law enforcement officers for illegal

wiretapping. Illegal wiretapping charges have been brought against a former higher ranking member of the State Narcotics Control Service and several former Ministry of Internal Affairs officials were being tried in Moscow at year's end for conducting illegal wiretaps in exchange for money.

In July prominent human rights lawyer Boris Kuznetsov filed information with the court in defense of his client, a former member of the Federation Council, which included transcripts of conversations recorded by the FSB without court authorization. The state prosecutor subsequently charged Kuznetsov with revealing state secrets, and Kuznetsov fled the country in July. A number of human rights observers described the charges against Kuznetsov as politically motivated, as he has represented sensitive high-profile cases such as the family of Anna Politkovskaya and the families of the Kursk submarine crew.

Law enforcement agencies have legal access to telephone and cellular phone company clients' personal information and require providers to grant the Ministry of Internal Affairs and FSB 24-hour remote access to their client databases. In past years, some experts opined that this access was unconstitutional, but no legal challenges were ever filed.

The government requires Internet service providers to provide dedicated lines to the security establishment, enabling police to track private e-mail communications and monitor Internet activity.

Human rights observers continued to allege that officers in the special services abused their positions by gathering compromising materials on public figures. Regional branches of the FSB reportedly continued to exert pressure on citizens employed by foreign firms and organizations, often to coerce them into becoming informants.

Federal forces and progovernment Chechen forces reportedly abducted relatives of rebel commanders and fighters.

g. Use of Excessive Force and Other Abuses in Internal Conflicts

During the year complex and interlocking insurgencies caused continuing instability in the North Caucasus. These included the remnants of a nationalist separatist insurgency in Chechnya, a widening Islamist insurgency throughout the North Caucasus, and continued clan warfare among elite groups struggling for power. Federal and local security forces were implicated in the excessive use of force to quell the insurgencies and engaged in human rights abuses, including torture, summary executions, disappearances, and arbitrary detentions. Chechen rebels also committed human rights abuses, including major acts of terrorism and summary executions. The role and number of federal forces has decreased considerably, leaving most security operations to local forces. Federal forces were rushed to Ingushetiya in August, however, following the failure of local forces to deal with a deteriorating security situation, and abductions and attacks have increased. Overall, despite some decreases in disappearances and killings, the human rights record remained poor, and unrest continued in and around the Chechen Republic and worsened considerably in the Republic of Ingushetiya.

Killings

The government's use of indiscriminate force in areas of the North Caucasus with significant civilian populations resulted in numerous deaths. While security forces generally conducted their activities with impunity, courts did address a few incidents. In June 2006 the Supreme Court overturned the acquittals of four servicemen charged with killing Chechen civilians and ordered new trials.

There was a significant increase in the number of killings, usually by unknown assailants, targeting both civilians and officials in Ingushetiya. Human rights organizations report that, in contrast to years when the conflict in Chechnya was more severe and Ingushetiya had relatively few killings, during the year there were more killings, attacks, and abductions in Ingushetiya than in any other republic in the North Caucasus. Ingushetiya authorities, including President Murat Zyazikov, have attempted to minimize the number of abuses and attacks, despite the deployment of several thousand additional Interior Ministry troops to stabilize the republic.

During February and March, security forces from Ingushetiya and neighboring Chechnya and North Ossetiya carried out several special operations in Ingushetiya in which nine suspected insurgents were killed.

According to human rights organizations, the situation continued to deteriorate in the summer. On June 17, police in Surkhakhi killed suspected insurgent Ruslan Aushev in a special operation that the NGO Memorial noted was conducted with extreme brutality. On September 2, police killed Apti Dolokov during a special operation in the town of Karabulak. Human rights organizations reported that police fatally shot Dolokov in the head after they had immobilized him. On September 27, police from the federal and local ministries of internal affairs killed two brothers, 24-year-old Said-Magomed and 21-year-old Ruslan Galayev in their homes in front of their families. The two were suspected of being religious insurgents. On October 9, police killed fifth-year law student Albert Gorbakov in Malgobek when he allegedly resisted arrest. According to Memorial, Gorbakov offered no resistance, but police shot him after he and others followed police orders to get out of their vehicle.

In April 2006 Bulat Chilayev, an employee of the NGO Civic Assistance, and Aslan Israilov disappeared and were later reported killed after being detained at a checkpoint near the village of Sernovodsk by armed men thought to be members of the Chechen Republic security forces. According to Civic Assistance, investigators found identification at the site of the kidnapping belonging to a member of a Chechen unit attached to the Ministry of Defense. Both men were reported to have been killed on the day they were detained.

In March 2006 federal serviceman Aleksey Krivoshonok was convicted of the November 2005 killings of three persons detained by federal forces at a checkpoint near the village of Staraya Sundzha in Chechnya. Krivoshonok was sentenced to 18 years in prison and ordered to pay \$7,692 (200,000 rubles) to the family of each victim. In May 2006 the Grozny garrison military court convicted serviceman Pavel Zinchuk of causing grave bodily harm in the same incident and sentenced him to seven years in prison.

On February 13, the North Caucasus circuit military court began new hearings in the case of Sergey Arakcheyev and Yevgeniy Khudyakov, police officers of the interior ministry who were accused of murdering three civilians in 2003. On February 1, the military collegium of the Supreme Court overturned the December 2006 ruling of the North Caucasus circuit military court and released Arakcheyev and Khudyakov from custody. On December 28, the North Caucasus military court sentenced Arakcheyev and Khudyakov to 15 and 17 years, respectively; Khudyakov did not appear for the sentencing and at year's end his whereabouts were unknown.

In April 2005 armed men took two persons who had filed cases with the ECHR from their homes; the body of one of them was found in May 2005, while the other was still missing.

There were no reliable estimates of civilian casualties as a result of military operations. Then Chechen state council chairman Taus Dzhabrailov reportedly told the press in June 2005 that more than 160,000 persons had been killed in Chechnya since 1994. Memorial has estimated that 75,000 civilians died during the two Chechen conflicts. Chechen officials acknowledged the presence of mass graves and dumping grounds for victims. In 2006 a new mass grave was reportedly discovered; with the remains of at least 57 persons, apparently rebel fighters and civilians killed during government forces' bombardment of the city in 2000. Chechen Ombudsman Nurdi Nukhazhiyev reported that the remains of approximately 3,000 persons were buried in mass graves in Chechnya.

Memorial noted that security forces indiscriminately used overwhelming force and heavy artillery to minimize their losses. On March 24 officers of the local military commandant's office fired upon three women in Shatoy District, Chechnya. One of them, Khaldat Mutakova, was killed, and the other two, Zalpa Mutakova and Zaira Kasumova, were wounded. In April a woman was wounded during an assault on a house in Untsukul'skiy district, Dagestan. On May 20 in Khasavyurt, Dagestan, two bystanders, an adult and child, were killed by militia fire. On May 22 militia officers fired at a suspect in the middle of a crowded square in the town of Kaspiysk, Dagestan; three bystanders were wounded.

In October 2006 the mountain village of Zumsoi was subjected to an aerial bombardment and two missile strikes. Memorial reported that in December 2006 two civilians were killed and one wounded when they came under fire from a military helicopter near the village of Chozhi-Chu. In June 2005 members of the Chechen-manned Vostok (East) Battalion of the Military Intelligence Directorate (GRU) raided the village of Borozdinovskaya, possibly in retaliation for the murder of the father of one of the battalion members. Members of the battalion forced male occupants from their homes, beat them, and forced them to lie on the ground in heavy rain for several hours. Two civilians were killed, two homes were burned, and 11 men were detained. Approximately 1,000 villagers fled to neighboring Dagestan, 900 returned in 2005, and the remainder was settled in Dagestan this year after living in a tent camp for nearly two years. The whereabouts of the 11 men detained remained unknown. In October 2005 a military court convicted one Vostok commander, Mukhadi Aziyev, of abuse of power and gave him a three-year suspended sentence.

In most cases security forces acted against civilians with impunity, and even the limited efforts by authorities to impose accountability failed. One exception was the June 14 conviction of Eduard Ulman, who was sentenced to 14 years in prison for killing Chechen civilians. Three other servicemen, Vladimir Voevodin, Aleksandr Kalaganskiy, and Aleksey Perelevskiy disappeared in April but were sentenced in absentia to nine to 12 years in prison.

Federal forces and their opponents continued to use antipersonnel mines in Chechnya, although Landmine Monitor reported that Chechen fighters increasingly used improvised explosive devices. Reports suggested that the number of landmine casualties was declining over time. According to UNICEF estimates, from 1995 to 2007, 3,060 civilians were injured and 692 killed by landmines and unexploded ordnance, including 187 children killed and 566 injured.

Abductions

During the year there were reports of federal and local government involvement in disappearances in Chechnya, Dagestan, and Ingushetiya. The number of disappearances declined in Chechnya, but increased in Ingushetiya and Dagestan. There were continued reports of abductions followed by beatings or torture to extract confessions, abductions for political reasons, and kidnappings for ransom by criminals. Security forces alleged to be involved in these disappearances acted with impunity. The NGO Memorial reported 25 disappearances in Chechnya through August, a marked decrease from the approximately 150 cases reported during the same period of 2006. Through August, 22 persons were reported as disappeared in Ingushetiya, 22 persons were reported disappeared in Dagestan, and (through June) five persons were reported disappeared in North Osetiya.

According to Chechnya's General Prosecutor's Office, 80 persons were abducted in the first six months of the year. As of

July 11, according to Chechen Ombudsman Nurdi Nukhazhiyev,

2,700 persons were officially missing in Chechnya.

The human rights NGO Memorial documented a marked decrease in the number of abductions in Chechnya through August and attributed the decrease to Chechen President Ramzan Kadyrov's orders to militants under his control. Other human rights observers were less optimistic that the numerical decrease reflected actual improvement, but rather a reluctance by family members to report relatives as abducted due to fear of reprisal. During the first eight months of the year, Memorial documented 25 abductions in which 17 persons were reported released, five disappeared, and one killed. Two cases remained under investigation by authorities. In 2006 Memorial documented 187 abductions, and 63 disappeared, 11 of whom were later found dead. Memorial documented 323 abductions in 2005.

On January 10, according to Memorial, members of an unknown security agency abducted Zelimkhan Kurbanov in Grozny. He was later charged with carrying out terrorist attacks and sabotage in Grozny. On February 13, Interior Ministry police took into custody Kurbanov's brother Said Magomed Kurbanov and held him in custody for one day and reportedly mistreated him. Federal Interior Ministry police (ORB-2) officers reportedly warned Magomed Kurbanov not to tell anyone how they treated him and that they still held his brother in custody.

On February 20, Memorial reported that ORB-2 police took Ramzan Khasiyev and Shakhid Ipayev into custody; they beat Ipayev and tortured Khasiyev with suffocation and electric shocks. The two were reportedly released after Khasiyev's brother, a member of another law enforcement agency, intervened. On March 5, a criminal case was opened against the ORB-2 policemen for the torture of Khasiyev. On April 24, Ipayev was detained by federal narcotics police after he testified against the ORB-2 officers.

On July 19, according to Memorial, unidentified police officers took two brothers, Umar and Ali Bikiyev, into custody after a warrantless search of their house. On July 22-23, relatives of the two brothers held a spontaneous rally at the government building in Grozny demanding their release. The two were released separately one month later.

Memorial reported an increase in the number of abductions in Ingushetiya: 22 persons were abducted during the first eight months of the year, compared to 11 in all of 2006. In Dagestan, Memorial documented seven abduction cases through May and an additional 15 cases in July; a significant increase compared to the same period in 2006. The NGO Mothers of Dagestan reported 21 persons disappeared during the same period, and the NGO Movement for Human Rights stated that, between April and August, at least 20 persons were abducted by security forces.

On June 27 Memorial reported that residents of the village of Surkhakhi prevented members of the FSB from taking Khalit Aushev into custody by stopping them from leaving the village until the local police arrived. The FSB officers did not have a warrant for his arrest. This action followed the June 17 special operation in Surkhakhi in which Ruslan Aushev was killed and FSB officers reportedly beat and tortured several other members of the Aushev family living in the village.

In late April three residents of Makhachkala, Ramaz Dibirov, Isa Isayer, and Muhamar Mammayer disappeared. According to Memorial, the head of the Division for Combating Terrorism of the Dagestani Republic Ministry of Internal Affairs told relatives of the men on June 30 that the men were in police custody. As of September 30, their whereabouts remained unknown.

On September 12 armed men reportedly abducted Vagap Tutakov in Chechnya. The International Helsinki Federation stated that there was reason to believe he was targeted for political reasons. Tutakov, a former member of the Ichkeria parliament to the Parliamentary Assembly of the Council of Europe and Aslan Makhadov's Special Representative in Strasbourg, had supported Chechnya's independence and was critical of Russian policies in the North Caucasus.

Amnesty International reported that it was aware of only one conviction by a Russian court in cases involving disappearances in Chechnya. In 2005 a Grozny court convicted Lieutenant Sergey Lapin, a member of a special forces riot police unit, of inflicting serious harm and other charges related to the torture and disappearance of Chechen citizen Zemlikhan Muralov in 2001.

There were continued reports during the year that government forces took relatives of Chechen rebels as hostages to force them to surrender. According to Memorial, on January 16, officers of the Republic of Chechnya's Antiterrorism Center abducted five relatives of Khozh-Akhmed Dushayev in the village of Kurchaloy. Dushayev was wanted on suspicion of being a Chechen rebel. All five were later released. On April 15, officers from the Antiterrorism Center (ATC) detained relatives of Bislan Ilmiyev, an ATC officer under suspicion of aiding antigovernment fighters. Ilmiyev's wife, mother, one-year-old child, his brothers, their wives, and their children were detained. Ilmiyev's brother Ruslan was later released and ordered to find his brother, according to Memorial.

Chechen security forces seized relatives of Chechen commander Doku Umarov in May 2005, including his father, wife, and six-month-old son. They later released the wife and child, but the father's location remained unknown. In August 2005 security forces also detained Doku Umarov's sister, Natasha Khumadova. A source in the Urus-Martan district administration told Interfax that armed persons broke into Khumadova's house and threatening her with weapons, led her away. In August Chechen officials erroneously announced that Umarov, who later became the separatist "president," had voluntarily surrendered. Subsequent reports noted that it was Umarov's older brother, Akhmad, who surrendered. Appearing at a press conference with Chechen officials, Akhmad Umarov said that he had been arrested in March 2005 and held by authorities

since. Human rights activists suggested that Akhmad Umarov had never participated in fighting alongside rebels, and that his detention was an effort to pressure Doku Umarov to surrender. At year's end there was no further information on the whereabouts of Umarov's relatives.

Some killings of government officials appeared connected with ongoing strife in the North Caucasus. The prosecutor's office of Chechnya reported that, between 2000 and 2006, 71 criminal cases were opened based on actual or attempted assassinations of municipal administration leaders or their staff. Of these cases, nine have gone to trial.

In June 2006 Ingushetiya Ministry of Internal Affairs Lieutenant Colonel Musa Nalgiyev, three of his children, a driver, and bodyguard were killed as he took the children to a child care center. Nearby, on the same day, deputy district administrator Galina Gubina was shot and killed. In August 2006 Dagestani prosecutor Bitar Bitarov died in a car bomb attack in the town of Buinaksk, Dagestan Republic. When Dagestani Minister of Interior Adilgeriy Magomedtagirov was traveling to the scene, his car was targeted by a car bomb and automatic weapons fire; he survived. In October 2006 the administrative head of the village of Chechen-Aul, Umar Khatsiyev, was shot and killed in his home.

Criminal groups in the Northern Caucasus, possibly having links to rebel forces, frequently resorted to kidnapping. The main motivation behind such cases apparently was ransom, although some cases had political or religious overtones. The hostage-takers held many of their victims in Chechnya or Dagestan.

Although incidents continued, statistics of both authorities and Memorial appeared to indicate a continued decline in abductions and disappearances in Chechnya compared to previous years. However, human rights groups and authorities interpreted the data differently. Government spokesmen attributed the apparent decline to efforts begun by the Chechen government in 2004 to reinforce existing requirements that military forces have license plates on their vehicles when entering a village, be accompanied by a representative of the prosecutor's office and local officials, identify themselves when entering a house, prepare lists of all persons arrested during the operation, and share those lists with local authorities. Chechen officials subsequently prohibited law enforcement officers from wearing masks.

Human rights groups attributed at least part of the statistical decline to the reluctance of detainees' relatives to complain to the authorities or human rights groups out of fear of reprisals. Citing numerous incidents in which unidentified armed men wearing camouflage broke into houses and abducted civilians, they expressed skepticism about government assertions that regulations governing the behavior of security forces were being more closely observed.

The decline in abductions by federal forces was partly offset by the increasing role of the security forces under the command of Chechen President Kadyrov, either on their own initiative or in joint operations with federal forces. Human rights groups reported that these forces were frequently suspected of disappearances and abductions, including those of family members of rebel commanders and fighters. The International Helsinki Foundation for Human Rights estimated in a February 2005 report that Kadyrov's security forces were responsible for up to 75 percent of the crimes in Chechnya.

In April Kadyrov and other officials announced that steps had been taken to remove units from Kadyrov's direct oversight. Kadyrov abolished the Chechen Republic's Antiterrorist Center and reorganized its forces into two police battalions and subordinated them to the federal Ministry of Internal Affairs. Human rights activists contended, however, that these forces maintained their loyalty to Kadyrov, and that he continued to exert control over them.

According to human rights observers, government forces responding to Chechen attacks at times engaged in indiscriminate reprisals against combatants and noncombatants.

Amnesty International reported federal and Chechen security forces targeted female civilians, both in response to terrorist bombings carried out by Chechen women and to put pressure on male relatives suspected of being rebels. In August 2006 masked men in camouflage detained Yelena Yersenoyeva, the widow of Chechen terrorist Shamil Basayev, and also a

journalist and AIDS activist in Grozny. Two days before the detention, Yersenoyeva had written to human rights organizations claiming she and her family were being harassed by Chechen security forces. In October 2006 Yersenoyeva's mother was reportedly abducted from a village near Grozny. There was no further information on their whereabouts.

During the year, the ECHR found Russia responsible in 14 cases dating from 2000, for the disappearance and presumed death of disappearance victims, and for inhuman treatment of families by refusing to provide information on the victims' fate. In some cases, appellants said that they were offered settlements or threatened in an effort to have them drop their cases.

On July 5, the ECHR found the Russian government responsible for the disappearance and murder of former speaker of the Chechen Parliament, Ruslan Alikhadzhiyev. There have been no reports on Alikhadzhiyev since Russian soldiers arrested him during a military operation in 2000. On July 12, the ECHR found Russia responsible for the disappearance of Ayubkhan Magomedov, who was arrested by federal forces in Chechnya in 2000, and not heard from since.

In April and May, the ECHR found Russia responsible for five human rights violations in the disappearance and killing of Shakhid Baysayev and Shamil Akhmadov, and awarded their families compensation. The ECHR asked the government to investigate the cases and to bring those responsible to justice.

On June 21, in the case of Bitiyeva vs. Russia, involving the killing of four members of a Chechen family in 2003, the ECHR found that Russia violated several articles of the European Convention on Human Rights and ordered it to pay \$124,000 (85,000 euros) compensation.

Chechen Republic forces loyal to President Ramzan Kadyrov and federal troops continued to arrest relatives of Chechen separatist leaders and fighters to force them to surrender, according to human rights groups.

Physical Abuse, Punishment, and Torture

Armed forces and police units were reported to have routinely abused and tortured persons in holding facilities where federal authorities sorted out fighters or those suspected of aiding rebels from civilians.

In Chechnya there continued to be reports of torture by government forces. On March 13, the Council of Europe's Committee for Prevention of Torture published a statement about cruel treatment and torture in Chechnya, based on visits to the region in 2006 and the Russian government's comments. The committee noted Russia's inability to effectively combat torture in Chechnya. In March European Council Commissioner for Human Rights Thomas Hummarberg visited Chechnya and stated that torture and cruel treatment were widespread in Chechnya, and that those who used torture acted with total impunity. On

March 14, Amnesty International accused the Russian government of negligence with regard to violations in Chechnya and called on it to take immediate steps to eradicate torture, cruel treatment, arbitrary detentions, and disappearances, and to prosecute those who committed such crimes.

In 2006 Human Rights Watch reported that it had documented 115 torture cases in Chechnya between July 2004 and September 2006. The report concluded that most of the incidents occurred at one of at least 10 unlawful detention centers. In 2006 Memorial representatives discovered an illegal detention center in Grozny where detainees were reportedly held, tortured, "disappeared," and killed by federal police units that had temporarily been assigned to Chechnya. Despite appeals to officials to investigate Memorial's allegations, the building --a former boarding school for deaf children--was demolished.

On February 14, according to a written complaint sent to NGO Memorial, unknown security officers abducted Shamsudi Khadisov to an unknown location where he was chained to a radiator, interrogated and tortured. Khadisov was then moved to ORB-2 offices where he was beaten and forced to falsely confess to a crime. When he recanted following his transfer to the investigation isolation facilities (SIZO-20/1) he was returned to ORB-2 offices, where security officers beat him and threatened to abduct and torture his relatives. Following a failed suicide attempt, Khadisov was again moved to SIZO.

On March 12, in Chechnya, ORB-2 officers reportedly detained and tortured Ramzan Khasiyev and Shakhid Ipayev over an 11-hour period. Doctors who examined the men recorded a concussion, spine trauma, and other injuries. Prosecutors opened a criminal case against the ORB-2 officers.

On July 10, unidentified security officers (allegedly from the Chechen Ministry of Internal Affairs) detained Mikhail Akbulatov in Shatoy village, Chechnya, and tortured him. The interrogators, who spoke Chechen, questioned him about rebel groups. After 20 hours, he was returned to his village. A doctor who examined him reported signs of torture.

Following arrests made after the 2005 attack on Nalchik, during which militants attacked buildings associated with security services, Human Rights Watch reported there were at least eight cases in which detainees were mistreated and that lawyers for five detainees were barred from representing their clients. A year after the arrests, authorities released some detainees. Ruslan Nakhushiev, head of the Islamic Research Institute in Nalchik, who sought to promote dialogue between authorities and the Muslim community, disappeared in 2005 after being questioned about the attack by the FSB; in December 2006 the Ministry of Internal Affairs of Kabardino-Balkaria included him on its list of most wanted criminals.

In some cases of alleged physical abuse and torture, according to NGOs, relatives were afraid to file complaints about torture and abuse, due to fear of additional reprisal.

According to Memorial, there were no arrests or convictions of servicemen during the year for crimes committed against civilians.

According to Memorial, the resumption of security sweeps, known as "zachistki," added to abuses reported in the North Caucasus. During April and May, sweeps were conducted by federal forces and local law enforcement in the villages of Ali-Yurt, Surkhakhi, Gaybek-Yurt, and Vosnesenovskaya, and in the town of Malgobek in Chechnya. The sweeps lasted for several days and, in some cases, officers refused to identify themselves. In at least one case, security forces also looted homes and beat civilians. Similar security sweeps were conducted in Ingushetiya. Human rights activists believed that such operations contributed to a culture of fear that authorities used to minimize resistance.

Government forces continued to abuse individuals seeking accountability for abuses in Chechnya and continued to harass those who appealed to the ECHR. Amnesty International and other human rights groups have reported reprisals against applicants to the court, including killings, disappearances, and intimidation. According to press reports and human rights NGOs, at least five applicants to the ECHR have been killed or abducted. In its July 5 ruling in the case of Alikhadzhiyeva v. Russia, the ECHR noted that the relatives of disappeared persons and witnesses should be protected from intimidation and revenge.

Chechen human rights Ombudsman Nurdi Nukhazhiyev continued the practice of his predecessor in not cooperating with human rights NGO Memorial, and he and Chechen President Kadyrov spoke out publicly against the NGO.

The Independent Commission on Human Rights in the Northern Caucasus, headed by the chairman of the State Duma Committee on Legislation, has reduced the number of commission offices in Chechnya. The commission heard hundreds of complaints, ranging from destruction or theft of property to rape and murder; however, it was not empowered to investigate or prosecute alleged offenses and had to refer complaints to military or civil prosecutors. Almost all complainants alleged violations of military discipline and other crimes by federal and Chechen Republic forces.

In contrast to past years, there were few reports of Chechen rebel fighters committing serious human rights abuses such as terrorist acts against civilians in Chechnya and elsewhere in the country or using civilians as human shields.

In a large number of incidents, unidentified persons targeted officials in violent attacks. On February 7, Vedeno district, Chechnya, deputy administration head Mayrbek Murdagamov was killed by an explosive device as he was leaving his home. On February 14, Patriots of Russia Dagestan branch leader Eduard Khidirov and his brother were severely wounded when

their car came under fire in Makhachkala. On February 20, Vladimir Albegov, federal judge of Prigiridnyy district court in North Osetiya, was found dead on a road near Vladikavkaz. Albegov had disappeared three days earlier. A criminal case has been opened.

According to Memorial, in Dagestan representatives of the Ministries of Internal Affairs and Defense and Traffic Police (GIBDD) continue to be targeted on numerous occasions. For example, on July 18, five militia officers died and eight were injured in Kizil-Yurt village when a remote-controlled device detonated at a sports facility where officers were exercising. On August 3, a Buynaksk deputy chief of the Ministry of Internal Affairs was killed. On August 7, an explosive device went off on the outskirts of Khasavyurt. When a militia patrol car arrived at the scene, a second bomb detonated. No casualties were reported.

Other Conflict-Related Abuses

By year's end, an estimated 120,000 persons were still displaced within Chechnya; approximately 12,000 lived in temporary accommodation centers, all of which President Kadyrov ordered closed in 2007. At the end of 2006, the Office of the UN High Commissioner for Refugees registered 20,075 IDPs from Chechnya and Ingushetiya, a third of whom remained in temporary settlements. Approximately 150,000 persons lived within Chechnya, including thousands living in temporary accommodation centers. Conditions in those centers reportedly failed to meet international standards.

Throughout the year security forces continued to conduct security sweeps and passport checks at temporary settlements in Ingushetiya housing IDPs from Chechnya. These sweeps sometimes led to reports of human rights abuses or disappearances.

Human rights groups documented illegal detention centers in Chechnya and other locations in the North Caucasus where abuses occurred. Chechen Republic security forces reportedly maintained secret prisons in Tsentoroy, Gudermes, and other locations. Human Rights Watch reported it had detailed descriptions of at least 10 unlawful detention facilities. Human rights groups reported that officers of the federal Ministry of Internal Affairs' Second Operational Investigative Bureau illegally detained and tortured persons in its Groznyy offices. The UN Committee Against Torture noted its concern about these unofficial places of detention.

Beginning in 2004, authorities refused to grant the ICRC access, under ICRC's standard criteria, to those detained as part of the conflict in Chechnya, and the ICRC subsequently suspended its detention visits. The suspension remained in place.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The constitution provides for freedom of speech and of the press; however, in practice government pressure on the media persisted, resulting in numerous infringements of these rights. The government used direct ownership or ownership by large private companies with links to the government to control or influence the major media outlets, especially television; many media organizations saw their autonomy further weaken. The government used its controlling ownership in major national television and radio stations, as well as the majority of influential regional ones, to restrict access to information about issues deemed sensitive, including coverage of opposition political parties, particularly during the parliamentary elections campaign. The OSCE representative on freedom of the media, during the State Duma election, highlighted numerous press freedom abuses, including harassment of media outlets, legislative limitations, lack of equal access, and arbitrary application of rules. Unresolved killings of journalists remained a problem. Mistreatment of journalists by authorities included reported cases of abuse, including physical assault. The government severely restricted coverage by all media of events in Chechnya. There were indications that government pressure led reporters to engage in self-censorship, particularly on issues critical of the government.

While the government generally respected citizens' rights to freedom of expression, it sometimes restricted this right with regard to issues such as the conduct of federal forces in Chechnya, human rights, and criticism of the administration. Some regional and local authorities took advantage of the judicial system's procedural weaknesses to detain persons for expressing views critical of the government. With some exceptions, judges appeared unwilling to challenge powerful federal and local officials who sought to prosecute journalists. These proceedings on occasion resulted in stiff fines.

Three of the 14 national newspapers are owned by the government or state-owned companies, as are more than 60 percent of the country's 45,000 registered local newspapers and periodicals. The government continued selective attempts to influence the reporting of independent publications. While the largest daily newspaper, *Moskovskiy Komsomolets*, is independent, other influential national newspapers, including *Izvestiya*, and *Rossiyskaya Gazeta* and *Kommersant* are owned by the government, persons affiliated with the government, or state-owned companies. Additionally, the Ministry of Defense owns the newspaper *Krasnaya Zvezda*. Although *Kommersant* changed editors and several journalists left after the change in ownership and the paper replaced its opinion and comment page with its "no comment" page where it reprints articles on key foreign policy issues from international papers, there has not been a discernible shift in *Kommersant's* editorial position since the change in ownership in August 2006. *Izvestiya* has increasingly avoided controversial topics and assumed a more pro-Kremlin stance on key policy issues, but not on every topic. In 2006 United Russia Duma deputy Aleksandr Lebedev and former Soviet leader Mikhail Gorbachev purchased 49 percent of *Novaya Gazeta*, an independent investigative weekly. Both men indicated that they did not intend to interfere with editorial policy and by year's end there was no indication that they had.

One analysis of this ownership trend was offered by media freedom advocates, who considered it to be evidence of government efforts to expand control of media beyond national television before the 2007-08 parliamentary and presidential elections.

There are six national television stations in Russia: the federal government owns Rossiya, and owns a controlling interest in First Channel; state-owned Gazprom owns a controlling interest in NTV; government-affiliated Bank Rossiya owns a controlling interest in Ren-TV and Fifth Channel; and the Moscow city administration owns TV Center. Approximately two-thirds of the 2,500 television stations in the country are completely or partially owned by the federal and local governments. The government indirectly influenced private broadcasting companies through partial ownership of such commercial structures as Gazprom which in turn owned controlling or large stakes of media companies. This ownership of TV media often resulted in editorial constraints. Following the sale of REN-TV, some observers alleged that the network's editorial line became more progovernment. In 2006 there were a number of resignations among the news staff who alleged the network had started to practice self-censorship aimed to pacify the government. Influence over editorial policies, however, was not uniform. For example, despite a majority ownership of Ekho Moskv by Gazprom, the radio station provided independent coverage of controversial political themes.

International media faced some impediments to their ability to operate freely. Russian authorities last year curtailed a number of stations broadcasting Radio Free Europe/Radio Liberty and Voice of America news programs. In August Russian state licensing authorities ordered the BBC World Service's Russian partner, Bolshoye Radio, in Moscow to remove BBC programming or lose its license. Bolshoye Radio's decision to halt the re-broadcasting of BBC programming, and similar decisions by two other radio stations in the past year, eliminated BBC broadcasting on the FM band. As a result, the BBC's Russian-language services were now available only on medium and shortwave broadcasts. The BBC planned to appeal, but the House of Commons' foreign affairs committee concluded that the BBC Russian Service's "... development of a partnership with the international arm of a Russian state broadcasting network puts the BBC World Service's reputation for editorial independence at risk."

The government exerted its influence most directly on state-owned media. Journalists and news anchors of Rossiya and First Channel reported receiving "guidelines" from management prepared by the presidential administration, indicating which politicians they should support and which they should criticize. Government-controlled media exhibited considerable bias in

favor of President Putin. In the campaign before the December parliamentary elections, state-controlled print and broadcast media resources overwhelmingly favored United Russia, President Putin's party, to the exclusion of other opposition parties.

The government maintained ownership of the largest radio stations, Radio Mayak and Radio Rossiya.

The government maintained ownership of the national news agencies ITAR-TASS and RIA-Novosti. In May the new director general of the Russian News Service (RSN) reportedly established an editorial policy that required at least 50 percent of reports about Russia to be "positive" and forbade the mention of some key opposition politicians. In May many staff members quit in protest.

The television talk show *V Krug Sveta* (In the Spotlight) was cancelled in September 2006 by the Domashniy television channel after only four episodes, reportedly because the channel's shareholders were displeased by the show's political content.

On September 25, a district court in Moscow postponed hearings in the case of political analyst and Yabloko political party member, Andrey Piontkovskiy, pending further detailed analysis of his book. Piontkovskiy was charged with inciting "extremism" through his book *Unloved Country*. Earlier in the year, after a local branch of the Yabloko party published a collection of Piontkovskiy's articles, a court in Krasnodar Kray attempted to halt Yabloko's distribution of the book, warning the party that it contained passages which violated the law on extremism.

In July 2006 the Federal Registration Service (FRS) warned the media that references to the banned National Bolshevik Party without indicating that it had been banned could be considered dissemination of false information and lead to the "application of restrictive, precautionary, and preventative measures."

In April former *Kommersant* journalist Yelena Tregubova reportedly asked for political asylum in the United Kingdom, claiming that her life was in danger. Tregubova was the author of two books critical of the government and President Putin. In 2004, several months after her book was published, Tregubova escaped injury when a small bomb exploded outside her apartment.

In May police searched the Samara offices of *Novaya Gazeta*, confiscated its computers, and opened a criminal investigation against Sergey Kurt-Adzhiyev, the editor of the newspaper's local edition, on suspicion of the use of unlicensed software. *Novaya Gazeta* management denied the accusations. The paper was unable to publish its Samara edition after November.

In September producers of a documentary film about ethnic discrimination against children reportedly had difficulties in exporting the film footage from the Krasnodar airport. Airport security officials allegedly seized the film and later returned it damaged.

In December immigration officials denied entry into Russia to Natalya Morar, a correspondent of *The New Times* magazine. Morar, a Moldovan citizen residing in Moscow, had published investigative articles about the government's handling of the 2007 State Duma elections. Border officials reportedly told her that she was considered a threat to state security and that the order to refuse her entry had come from the FSB.

The federal Ministry of Internal Affairs continued to control media access to the area of the Chechen conflict. Foreign journalists are required to have government accreditation to enter Chechnya, but even those with proper documents are sometimes refused access. During 2006 several Russian and foreign journalists were detained while on assignment in the North Caucasus region, but there were no known detentions of reporters in Chechnya during the year. In September 2006 police detained British reporters with the CMI independent news agency and Fatima Tilsova, editor-in-chief of the Regnum

news agency's North Caucasian branch, in the city of Nalchik. The British journalists intended to interview Tlisova but were detained for the entire day and prevented from doing so. The reason given for the detention was that the reporters had strayed into an off-limits area.

In November 2006 Moscow journalist Boris Stomakhin, editor of the monthly *Radikalnaya Politka* newspaper, was sentenced to five years in prison on charges of inciting ethnic hatred for violent and provocative writings. Human rights activists asserted that the severity of the sentence was unprecedented.

In July *Kommersant Vlast* published an interview with exiled Chechen rebel leader Akhmed Zakayev. RosOkranKultura, the agency within the Ministry of Culture that oversees the mass media, asked the general prosecutor's office to investigate whether the publication violated the law and warned the magazine against violating the law in the future.

In June the government reinstated accreditation to the U.S.-based ABC television network, and reportedly in October ABC assigned a Moscow correspondent. The government withdrew ABC's accreditation in 2005 after ABC News broadcast an interview with Chechen terrorist Shamil Basayev.

Mistreatment of journalists by authorities was not limited to Caucasus-related coverage. The Glasnost Defense Fund (GDF) and other media freedom monitoring organizations reported cases of abuse of journalists by police and other security personnel elsewhere, including physical assault and vandalism of equipment. In most instances, the mistreatment appeared to have been at the initiative of local officials.

There were no developments in the February 2006 police beating of Channel One reporter Olga Kiri in Vladikavkaz, the February 2006 police attack on a television cameraman in Bolshoye Kozino, the May 2006 police assault on reporter Natalya Gorchakova in Nizny Tagil, the June 2006 temporary detention of three reporters who were gathering information on the mayor of Volgograd, or the 2005 beating of two reporters and detention of three covering a rally by a radical youth group on Red Square in Moscow.

According to the GDF, 74 journalists were physically attacked during the year and eight journalists were killed during the year, nine were killed in 2006. In most cases authorities and observers were unable to establish a direct link between an assault and the persons who reportedly had taken offense at the reporting in question. Independent media NGOs still characterized beatings of journalists by unknown assailants as "routine," noting that those who pursued investigative stories on corruption and organized crime found themselves at greatest risk. The foundation reported that, in some cases, the killings appeared to be related to the journalists' work.

On March 27, Ivan Safronov, a *Kommersant* military reporter, died after falling from a fifth-story window in his apartment building (he lived on the third floor). In September, alleging the lack of evidence of any foul play, Moscow investigators closed the case. Safronov's family and some colleagues disagreed with the investigators' conclusion that he committed suicide because, shortly before his death, Safronov was writing a sensitive article on Russia's purported plan to sell military equipment; Safronov told friends and his editors that he had been warned not to file the story.

In April Vyacheslav Ifanov, a cameraman with Aleisk New Television, was found dead in his garage. Authorities determined he died of carbon monoxide poisoning but relatives and colleagues disputed this and noted that his body had numerous bruises. Shortly before his death, Ifanov was hospitalized with a concussion after military servicemen beat him and destroyed his camera as he filmed a report near their base. He pressed charges and identified one of the attackers prior to his death, but the case was stalled due to the suspects' military status.

In January 2006 reporter Vagif Kochetkov was killed in Tula. His relatives suggested the attack was connected with his work as a reporter. Police arrested local resident Yan Stakhanov and accused him of murder. In January 2007 the District Court of Tula returned the case to prosecutors for further investigation. The case remained under investigation at year's end.

In July 2006 in Saratov, Yevgeniy Gerasimenko, an investigative reporter for the newspaper *Saratovskiy Rasklad*, was found dead in his home, bound and bruised, with a plastic bag over his head. His colleagues noted that Gerasimenko was working on an investigative article prior to his death. In October 2006 Sergey Finogeyev, a homeless man, was convicted of the murder and sentenced to 18 years in prison.

On August 28, authorities announced the arrest of 10 suspects in connection with the October 2006 killing of prominent investigative journalist Anna Politkovskaya in Moscow. Politkovskaya's writing was highly critical of the war in Chechnya, the Chechen authorities, human rights abuses, and President Putin's administration. As a result of her writing, she received many death threats. Authorities **declined to provide any details about the persons detained; some detainees were subsequently released, and the investigation continued at year's end.**

Following Politkovskaya's killing, two other *Novaya Gazeta* staffers received death threats in 2006, one for his work on publications highlighting problems in the North Caucasus and the other in connection with his efforts to investigate the Politkovskaya killing.

No progress was reported during the year in the investigation of the 2005 killing of Magomed-Zagid Varisov in Makhachkala, director of the Center for Strategic Initiatives and Political Technologies and a columnist of the local weekly *Novoye Delo*, by unknown assailants. Varisov's colleagues said he received numerous threats in connection with his commentary on local politics.

In March a Moscow court suspended the trial in the case of the 2004 murder of Paul Klebnikov, the U.S. citizen editor-in-chief of Forbes Russia, and the Supreme Court ordered a new trial. The first trial was suspended when the lead defendant, Kazbek Dukuzov, failed to appear. Prosecutors obtained an arrest warrant for Dukuzov and claimed to be searching for him; the case will not resume until he is captured and brought to court.

Most high-profile cases of journalists killed or kidnapped in earlier years remained unsolved.

In October a newly formed investigative committee of the General Prosecutor's Office announced it would reexamine circumstances in the 2003 killing of Yuriy Shchekochikhin, a member of the State Duma and deputy editor of the newspaper *Novaya Gazeta*. At the time of his death, Shchekochikhin was investigating allegations of FSB responsibility for a series of 1999 apartment building bombings.

In September police officers in Kazan assaulted Natalya Petrova, an independent filmmaker known for her criticism of government policies in Chechnya. Local authorities said the police acted on a warrant to escort Petrova to a local courthouse to attend hearings on libel charges against her that were not related to her work as a filmmaker.

On November 23-24, in Ingushetia, armed men in camouflage uniforms kidnapped three television journalists and a human rights activist from their hotel room, drove them to a field, stripped them and beat them, threatened to execute them, and left them stranded. The three REN-TV journalists and Memorial's Oleg Orlov, who were in Ingushetia to cover an opposition political demonstration, had to walk a few miles to the nearest town, where the police held them for questioning for several hours without medical attention. The journalists had reportedly filmed a special forces operation the day before during which a young boy was killed by stray gunfire and his mother was fired upon. Most of the footage was seized from their hotel room by the armed men, but some had already been sent to the REN-TV studios in Moscow.

Between 2002 and 2006, Fatima Tilsova, an independent journalist in the North Caucasus who had written for *Novaya Gazeta*, *Regnum News Agency*, and the *Associated Press*, was reportedly subjected to numerous incidents of abuse and harassment related to her work. She covered human rights abuses in the troubled North Caucasus regions, including the conflict in the North Caucasus, abusive practices of the military in Chechnya, official corruption, and she criticized official policy towards human rights. In 2005 she was allegedly abducted by local FSB officers who beat her and extinguished

cigarettes on her fingers. In October 2006, after speaking at an international forum about the dangers to press freedom in the North Caucasus, she alleged that intruders broke into her home and put poison in her food; after the intrusion, she suffered kidney failure which she feared was attributed to poisoning.

Authorities at all levels used their authority, sometimes publicly, to deny access to journalists who criticized them. One method was to deny the media access to events and information, including filming opportunities and statistics theoretically available to the public. In January the Kurgan regional Duma decided not to admit reporter Nikolay Volkov to its meetings when the local newspaper *Kurgan I Kurgantsy* refused to send another reporter favored by the Duma, and in March the Kurgan city Duma voted to bar reporter Tatyana Kostitsyna from attending a session because of the tone of her previous articles. During the parliamentary election campaign, there were widespread reports of authorities pressuring the media to cover United Russia and not give equal coverage to opposition parties.

Through legislation and decrees, the government curtailed freedom of the press. On July 26, the government enacted a law on countering extremism that expanded the definition of extremism to include public discussion of such activity and provide law enforcement officials with broad authority to suspend media outlets that do not comply with restrictions. Media freedom advocates expressed concern that this broad interpretation of extremism could create a basis for government officials to stifle criticism and label independent reporters as extremists. For example, in a two month period this year, *Ekho Moskvy* reported receiving 15 warning letters from FSB officials and prosecutors, and in 2006 the Media Law and Policy Institute reported that the government issued 32 warnings to media outlets concerning purported extremist content.

Officials or unidentified individuals sometimes used force or took extreme measures to prevent the circulation of publications that were not favored by the government. For example, in January booklets containing instructions on how to bring cases against the government at the ECHR were seized in Tver. In March National Bolshevik party member Konstantin Marakov was detained in Voronezh for distributing an officially registered newspaper. While he was in jail, law enforcement officers reportedly visited his parents.

Government officials occasionally used legal actions against journalists and media outlets in response to negative coverage. The GDF estimated that at least 46 criminal cases and more than 200 civil cases were brought against journalists during the year. A 2004 Supreme Court decision prohibits courts from imposing damages in libel and defamation cases that would bankrupt the media organization, but, one NGO reported that local courts did not always follow this in practice. The GDF noted that during the year the courts have upheld civil defamation claims against journalists for amounts equivalent to approximately \$143,000 (3.5 million rubles).

Some NGOs have alleged that authorities began selectively targeting media outlets and organizations which are in opposition to the administration by raiding them for pirated software during the year. In May police in Samara seized computers from the offices of *Novaya Gazeta* and an organization that was coordinating an anti-Kremlin protest. Also in May, police in Tula confiscated a computer from the political movement the Popular Democratic Union. In July law enforcement authorities confiscated the computers of the Nizhny Novgorod offices of *Novaya Gazeta*; some alleged that this was part of a broader action against human rights organizations in that city. In late August Nizhny Novgorod police raided the offices of the Tolerance Support Foundation and the Nizhny Novgorod Human Rights Society, as well as *Novaya Gazeta*, allegedly searching for unlicensed computer programs. The police confiscated computers from the Tolerance Support Foundation, disrupting its work, and from *Novaya Gazeta*, preventing the newspaper from publishing its next issue.

In July the offices of the newspaper *Khabarovskiy Ekspres*, known for its occasional criticism of local authorities, were searched by the militia, who confiscated bookkeeping records and almost all of the newspaper's computers. Despite the seizure of tax records, the investigation was nominally related to a charge of libel made by a regional politician against the newspaper for publishing an article about his allegedly questionable business activities.

Some authorities used the media's widespread dependence on the government for transmission facilities, access to property, and printing and distribution services to discourage critical reporting, according to the GDF and media NGOs. The GDF reported that approximately 90 percent of print media organizations relied on state-controlled organizations for paper, printing, or distribution, and many television stations were forced to rely on the government (in particular, regional committees for the management of state property) for access to the airwaves and office space. The GDF also reported that officials continued to manipulate the price of printing at state-controlled publishing houses, to apply pressure on private media rivals. The GDF noted that this practice was more common outside the Moscow area.

In March local authorities denied the newspaper *Vsemu Naperekor* the use of printing facilities in Chita and the paper was forced to print in Buryatia. Authorities later confiscated the entire print run of an issue of the newspaper.

According to the GDF and other media NGOs, there were some instances of authorities using investigations into intellectual property rights violations (i.e., software piracy) to selectively confiscate computers and pressure media across the country.

Internet Freedom

The government reportedly did not restrict access to the Internet. Individuals and groups could generally engage in the peaceful expression of views via the Internet, including by e-mail, but traffic was reportedly monitored by the government. The government continued to require Internet service providers to install, at their own expense, a device that routes all customer traffic to an FSB terminal called the "system for operational investigative measures" that enabled police to track private e-mail communications and monitor Internet activity. There appeared to be no mechanism to prevent FSB access to the traffic or private information without a warrant. The FSB was not required to give telecommunications companies and individuals documentation on targets of interest prior to accessing information.

The government does not require Web sites to register as mass media, and unregistered Web sites were not subject to administrative sanctions. Postings on the Internet were subject to the same restrictions that applied to other types of expression, and some bloggers were charged with inciting hatred for their Internet postings.

In August prosecutors in the Komi Republic charged blogger Savva Terentyev with inciting hatred via the mass media after he wrote that corrupt policemen were criminals that should periodically be "set on fire" in the town square. Also in August, Dmitriy Shirinkin, a blogger from Perm, was charged as a "telephone terrorist" after he posted a fictional work that authorities considered an announcement of intent to commit a terrorist act.

There was widespread and growing access to the Internet through home, work, or public venues. Approximately 25 percent of adults had Internet access, almost all of whom use the Internet at least once a month.

Academic Freedom and Cultural Events

The government did not restrict academic freedom; however, human rights and academic organizations questioned whether the convictions of Igor Sutyagin, Valentin Danilov, and others inhibited academic freedom and contact with foreigners on subjects that the authorities might deem sensitive.

In May prosecutors in Novosibirsk dropped their case against rocket scientist Oleg Korobeinichev, who had been accused of disclosing state secrets for participating in a foreign research grant program. In July the deputy head of the Prosecutor's Office publicly apologized to Korobeinichev for any damage that may have been caused by falsely accusing him.

In 2005 authorities found the Sakharov Center director and a staff member guilty of inciting religious hatred in connection with a 2003 exhibit of religious-themed art that many viewed as provocative. In June a Moscow district prosecutor opened a criminal case against the Sakharov Center director for instigation of ethnic and religious hatred because the center had hosted a provocative art exhibit in March. The case remained under investigation.

b. Freedom of Peaceful Assembly and Association

Freedom of Assembly

The law provides for freedom of assembly, but local authorities increasingly restricted this right in practice.

Permits are required for public meetings, demonstrations, or marches, and must be requested between five and ten days before the event. Local elected and administrative officials selectively denied some groups permission to assemble, or offered alternate venues that were in inconvenient locations. Permits are not required for religious gatherings and assemblies, and unlike past years, there were no reported incidents of authorities denying religious groups access to venues where they could hold assemblies.

On May 27, participants in a Moscow gay rights demonstration were assaulted by counter-demonstrators. Security forces did little to protect the demonstrators and arrested approximately 25 gay rights activists.

Police used excessive force in violently suppressing the demonstrations by political opposition. There were cases of unlawful detentions and harassment, of human rights activists and participants in a number of Marches of Dissenters sponsored throughout the year by the opposition movement Other Russia.

For example, on April 14-15, militia detained over 300 participants in Marches of Dissenters in Moscow and St. Petersburg. In Moscow some participants were fined for administrative code violations, and some demonstrators and one journalist were beaten. In St. Petersburg police used excessive force to suppress the protest, beating, and injuring protesters, including former legislative assembly deputy Sergey Gulyayev.

On May 8, Ilya Gureyev, an organizer of the May 18 March of Dissenters in Samara, was arrested and sentenced to six months' imprisonment for violating the conditions of a suspended sentence. Mikhail Gangan, another organizer, was arrested and sentenced to house arrest. Both men earlier had been arrested for staging a demonstration in the office of the presidential administration in Moscow. On May 13, officers of the Organized Crime Directorate detained members of the dissenters' march organizing committee, Anastasiya Kurt-Adzhiyeva and Yuriy Chervinchuk. Police also detained Sergey Kurt-Adzhiyev, the chief editor of Samara's *Novaya Gazeta* newspaper, and searched the paper's editorial office.

In mid-May, in several locations, police detained political activists headed to Samara to take part in a dissenters' march and prevented them from going to Samara. Police detained Moscow Helsinki Group expert Sergey Shimovolos and Nizhniy Novgorod Human Rights Center lawyer Olga Chebotareva at the Samara railway station. On May 17, Red Youth Vanguard (AKM) leader Sergey Udaltsov was detained at a Moscow railway station as he prepared to go to Samara. He was released, but then arrested on the train heading for Samara. His wife, Anastasiya, the AKM press secretary, was also taken off the train. On May 17, Denis Bilunov, executive director of the United Civil Front, was detained at the Samara railway station. Youth movement leader Andrey Sidelnikov was also arrested. On May 18, 13 Other Russia representatives and accompanying journalists traveling to Samara for the march were prevented from catching a flight to Samara because they allegedly possessed counterfeit airline tickets. They were released without charge after the last flights from Moscow to Samara had departed.

On May 5, police took Other Russia organizer Dmitriy Treshchanin to a draft commission, where he was found eligible for military service and ordered to report for duty on May 21.

Red Youth Vanguard leader Sergye Udaltsov was detained at Sheremetyevo Airport June 9, on his way to St. Petersburg.

On April 22, Lev Ponomarev, Head of the Movement For Human Rights, his wife, and three young representatives of youth organizations were arrested while walking along the street downtown Moscow and delivered to the Krasnoselskoye interior affairs department.

On August 10, the militia dispersed a protest in support of a hunger strike by the group Mothers of Dagestan, who worked on behalf of families of persons who have disappeared in the conflict in the North Caucasus.

On August 27, the Popular Democratic Union, led by former Prime Minister Mikhail Kasyanov, was refused use of a hotel in Yekaterinburg for its conference. The hotel claimed it did not provide accommodation for political events. However, in December 2006 United Russia held its conference in the same venue.

On August 28, following a demonstration at the United Russia offices in St. Petersburg, police arrested 10 protesters, injuring three of them, including United Civil Front leader Olga Kurnosova.

On October 7, an international conference in honor of Anna Politkovskaya in Nizhniy Novgorod was cancelled after authorities raided the offices and seized the computers of the organizers, the Fund to Promote Tolerance. Participants found their hotel reservations cancelled, and the bank holding the funds to pay for the conference refused to transfer the funds to the organizers.

On November 23-24, authorities forcefully intervened to break up or prevent opposition protests in a number of cities, including in Moscow, St. Petersburg, Nizhniy Novgorod, and Nazran. Authorities detained opposition leaders, including Yabloko youth leader Ilya Yashin, Union of Right Forces Duma candidates Boris Nemtsov and Nikita Belykh, as well as human rights activists. Following an attempt to lead a march to the Central Election Commission, police arrested Other Russia leader Gary Kasparov. He was sentenced to five days in jail during an abbreviated hearing, in which he had only last-minute access to his lawyer and was not provided the opportunity to present witnesses. In Ingushetiya, two protests over human rights abuses by authorities were reportedly broken up. Authorities reportedly fired upon a crowd of demonstrators in Nazran. A REN TV crew and Memorial human rights activist Oleg Orlov, who were in Nazran in connection with the protests, were reportedly kidnapped and beaten, and then held by police during the duration of the protest while they were interviewed about their abduction and beating the night before.

In December 2006 police detained hundreds of opposition activists ahead of an Other Russia Dissenters' March in Moscow. Demonstrators were not allowed to march, but approximately 2,500 persons convened at a Moscow rally surrounded by approximately 8,500 police, special forces troops, and FSB officers. About 80 protesters were detained in Moscow, while 320 other activists were detained or taken off trains and buses on their way to Moscow. Some were kept in detention cells, and others were released after the rally ended.

In December 2006 Moscow city authorities denied approximately 300 members of the political party Yabloko and their supporters permission to march in memory of killed journalists. The authorities did give them a permit to hold a public demonstration.

In October 2006 police in Ingushetiya arrested rights activists and violently broke up a rally in memory of murdered reporter Anna Politkovskaya. Organizers were detained and fined.

In September 2006 NGO For Human Rights leader Lev Ponomarev was detained for holding a demonstration in an unauthorized location in Moscow. As required by law, he had notified authorities prior to the event, but he ignored the directive to hold the event in a different location. Human rights organizations asserted that such responses from the Ministry of Internal Affairs were not binding under the law and that Ponomarev's detention was both arbitrary and illegal.

In October 2006 police in Ingushetia arrested rights activists and violently broke up a rally in memory of Anna Politkovskaya. Security forces cordoned off a site in the center of Ingushetiya's main city of Nazran as approximately 40 rights activists and others tried to gather. According to press reports, police tore photographs of Politkovskaya from demonstrators' hands and injured at least one person. Three participants from Memorial were fined \$18.50 (500 rubles) each, and a local journalist was released after being briefly held by police. The organizers of the demonstration were charged with organizing an unsanctioned demonstration.

During the G-8 Summit in St. Petersburg in July 2006, human rights activists claimed 577 alleged incidents of illegal action by law enforcement officials against protestors, including short-term detentions on minor (and reportedly trumped up) charges such as "verbal abuse" and preventing protestors from traveling by bus or train to protest sites.

In July 2006 authorities prevented participants from attending an Other Russia conference in Moscow through threats or detentions and removing them from trains or aircraft en route to the city. Tactics reportedly included summoning attendees to police departments, coercing from them written promises to stay at home, and threatening them with detention on administrative charges. Some participants were reportedly attacked before the conference.

In 2005 Moscow police broke up a demonstration in front of city hall in support of the Emmanuel Pentecostal Church and arrested 10 supporters, who were later given five-day jail sentences. A Moscow district court ruled later that year that authorities had violated procedures for regulating public events. The church pastor confirmed that police interference ended following these court decisions.

Freedom of Association

The law provides for freedom of association, and the government generally respected this right; however, there were notable exceptions. Public organizations must register their bylaws and the names of their leaders with the Ministry of Justice. Several organizations were forced to suspend programmatic activities while registration was pending.

The law requires that political parties have 50,000 members nationwide and at least 500 representatives in each of half of the country's regions with no fewer than 250 members in each of the remaining regions to be registered.

The finances of registered organizations are subject to investigation by the tax authorities, and foreign grants must be registered. Authorities subjected some NGOs to lengthy investigations of their finances or delayed the registration of their foreign financed programs. Some NGOs said that these actions were intended to restrict their activities. For smaller NGOs without the organizational capacity to respond to tax investigations, such investigations had a more crippling effect on operations. In several cases authorities seemed to selectively apply these tax requirements to threaten organizations with possible closure.

In July the St. Petersburg branch of the Federal Registration Service (FRS) issued warnings and began liquidation procedures against three NGOs that had legally accepted foreign funding and promoted issues such as human rights, democracy, the environment, and immigrant rights. The FRS later rescinded the warnings against two of them, but continued its case against the Center for Educational and Research Programs, which it accused of tax evasion and interfering with Russian government agencies. The Center advises other NGOs in northwest Russia how to comply with the 2006 amendments to the NGO law.

The 2006 NGO law introduced strict oversight of NGOs by the FRS, part of the Ministry of Justice. The law, which went into effect in April 2006, imposed more stringent registration requirements for NGOs, particularly the branch offices of foreign NGOs, strict monitoring of organizations, extensive reporting requirements on programming and activities, and some limitations on the participation of foreign citizens. The law enabled more intrusive means for the government to scrutinize all forms of NGOs and granted the FRS discretion to deny registration or shut down an organization based on vague and subjective criteria. All NGOs who attempted to reregister their organizations were ultimately successful.

In May the Tula office of the Popular Democratic Union, the movement lead by former Prime Minister Mikhail Kasyanov, was subjected to a financial inspection by law enforcement. Officials arrived at the office interrupting a meeting of 70 participants, 20 of whom were arrested.

The government at times applied restrictions in a discriminatory manner. For example, in June the government used a personal administrative violation by the director as a pretext to seize the computers and financial records of the Educated Media Foundation (EMF), also known as Internews Russia, an NGO promoting professional and independent media. The EMF director, Manana Aslamazyan, was charged with an administrative violation when she failed to properly declare the currency

she brought into the country. Authorities subsequently elected to charge her with a criminal offense. Human rights advocates argued that the case against Aslamazyan was politically motivated, and that the infraction would normally be treated as an administrative, not criminal, violation. Internews was forced to curtail its activities, and in November a court approved Internews' request to close the NGO by March 2008.

In July 2006 the government amended the law "On Countering Extremism," increasing concerns among many that the amendments may restrict freedom of association and legitimate criticism of the government. In July the government enacted additional amendments that expanded the definition of extremism. Critics feared that even the threat of application of the law could have a chilling effect on NGOs and associations.

Some senior officials made critical statements during the year that contributed to, and reflected, increased suspicion of NGO activity. On February 20, in Munich, President Putin said that Russia considers NGOs that receive financing from other governments to be instruments of foreign influence, and on November 21, President Putin called those who receive funding from foreign embassies "jackals" who want to divide and disorient Russia.

In January 2006 the FRS filed a lawsuit to close the Russian Research Center for Human Rights, an umbrella organization of a dozen human rights groups, including the Moscow Helsinki Group and the Union of Committees of Soldiers' Mothers. The Ministry of Justice claimed that the group had failed to file reports of its activities for the past five years, a claim disputed by the group. In April 2006 the Basmannyy district court of Moscow refused to liquidate the Russian Research Center for Human Rights.

In April 2006 the 9th Arbitrary Appellation Court of Moscow overturned an earlier ruling against the PEN Center, which the government claimed owed \$75,000 (two million rubles) in back taxes. The PEN center continued to operate.

In July 2006 the Russian Federal Tax Service filed a tax claim against the Center for International Legal Defense, an NGO headed by one of former Yukos CEO Mikhail Khodorkovskiy's lawyers, after it was audited by tax inspectors. During the year the center continued to be targeted for harassment, including irregular administrative inspections.

The Supreme Court has banned Hizb ut-Tahrir as a terrorist organization, and 46 persons were convicted of being members, including 11 convicted during the year. Of these, 29 were serving prison sentences ranging from 11 months to four and one half years.

In January 2006 the Ministry of Justice denied registration to the National Bolshevik Party. On August 7, the Supreme Court upheld the decision. This was the fifth denial of registration since 1998.

On March 23, the Supreme Court upheld the decision by a district court to revoke the registration of the Republican Party.

On July 24, the new political party Great Russia was denied registration. The party made a second unsuccessful attempt to register on August 23.

In October 2006 the Popular Democratic Union, Kasyanov's movement, was denied registration.

c. Freedom of Religion

The constitution provides for freedom of religion, and the government generally respected this right in practice. Although the constitution provides for the equality of all religions before the law and the separation of church and state, the government did not always respect these provisions in practice. Conditions improved for some minority religious groups while remaining largely the same for most, and government policy continued to contribute to the generally free practice of religion for most of the population

Religious groups do not need to register with the government in order for members to practice their faith, but the law requires all religious groups that want legal status (in order to open bank accounts, purchase property, or enter into contracts) to register with the government. The law prevents religious groups who have existed in Russia for fewer than 15 years from registering as legal organizations. According to the FRS, 22,956 religious organizations had registered with the government as of January 1, an increase of 443 from January 2006. Local courts largely upheld the right of nontraditional groups to register or reregister, but a few religious groups continued to contest denials of registration in the courts. In some cases government officials refused to comply with court orders to register certain groups such as the Salvation Army in Moscow.

Russia does not have an official state religion, and the law recognizes Russian Orthodoxy, Islam, Judaism, and Buddhism as "traditional." The Russian Orthodox Church is the dominant faith in the country, and while no faith holds legal privileges or advantages, in practice the Russian Orthodox Church maintains a preeminent status and a number of formal and informal agreements with government ministries on matters such as guidelines for personal education, religious training for military personnel, and law enforcement and customs decisions. These agreements give the Russian Orthodox Church far greater access than other religious groups to public institutions, such as schools, hospitals, prisons, and the military.

Some human rights groups and religious minority groups criticized the procurator general for encouraging legal action against some minority religions and of giving official support to materials that were biased against Muslims, Jehovah's Witnesses, the Church of Jesus Christ of Latter-day Saints (the LDS Church), and others. There were credible reports that individuals within the federal security services and other law enforcement agencies harassed minority religious groups, investigated them for purported criminal activity and violations of tax laws, and pressured landlords to renege on contracts.

Some federal agencies, such as the FRS, and many local authorities continued to restrict the rights of a few religious minority groups. Legal obstacles to registration under the Law on Religions disadvantaged some religious groups considered nontraditional. The 2006 NGO Law contained provisions that applied to registered religious organizations. That law permits government inspections of religious organizations and attendance at some public events with advance notice. Registered religious organizations must provide annual financial reports and other documents upon request to the FRS, and report within three days any changes in the organizational leadership or address.

Some regional officials used contradictions between federal and local laws and varying interpretations of the law to restrict the activities of religious minorities. According to many observers, local governments were more susceptible to pressure from the local religious majority, and therefore were more likely to discriminate against local minority religious communities. However, there were only isolated instances in which local officials detained individuals engaged in public discussion of their religious views, and these incidents were usually resolved quickly.

The ECHR ruled in October 2006 that the federal government's refusal to reregister the Moscow branch of the Salvation Army violated the right of assembly and freedom of religion of the organization. The government paid \$14,600 (10,000 euros) in damages and legal fees to the Salvation Army. The Salvation Army had not applied to reregister and continued to operate in Moscow at year's end.

The Izhevsk branch of the Church of Scientology has disappeared from public view following years of authorities impeding their operations. Since these centers had not been in existence for 15 years, they were unable to register and could not perform religious services, although they were allowed to hold meetings and seminars.

The LDS Church has not been able to register a local religious organization in Kazan, Tatarstan, despite numerous attempts since 1998.

The federal government has banned only one religious organization, Hizb ut-Tahrir, which it designated as a terrorist organization. There were indications that the security services, including the FSB, treated the leadership of some other Islamic groups as security threats. The republics of Dagestan and Kabardino-Balkariya have laws banning extremist Islamic Wahhabism, but there were no reports that authorities invoked these laws to deny registration to Muslim groups.

Some observers said that police harassment, detention, and torture of Muslim clerics and alleged militants in the Kabardino-Balkariya Republic increased after a 2005 rebel attack on the Nalchik police headquarters. Human rights groups reported that, following the 2004 hostage-taking in Beslan, the authorities increased the number of criminal "extremism" cases against Russian and foreign Muslims.

The 1997 law created three categories of religious communities (groups, local organizations, and centralized organizations) with different levels of legal status and privileges. The Church of Scientology has faced the greatest difficulties in registering branches as religious organizations. The 1997 law requires religious groups to have had at least a 15-year presence in Russia before becoming eligible to register as a legal organization.

The Church of Scientology challenged this provision of the 1997 law at the ECHR; the case was ongoing at year's end. A 1997 Supreme Court ruling grandfathered religious organizations which had registered before the 1997 law took effect, but the Church of Scientology had only one local organization (in Moscow) that was legally entitled to reregister. During the year the ECHR ruled that Moscow authorities violated the religious freedom rights of the Church of Scientology by refusing to reregister that Moscow branch. The Russian government appealed the decision.

There continued to be some restrictions on establishing, building, or maintaining places of worship and training sufficient clergy to serve believers. The Jehovah's Witnesses have had difficulty getting permits to build assembly halls in some regions. In May 2006 Mayskaya Gorka city authorities in Arkhangelsk Oblast refused to provide the Jehovah's Witnesses with a plot of land following a public hearing that focused on religious beliefs instead of plans for the land.

In Zlatoust, Chelyabinsk Oblast, local authorities first provided the Jehovah's Witnesses with a plot of land to build a Kingdom Hall, but following complaints from local residents, the authorities attempted to prevent this construction. The Jehovah's Witnesses won several court cases against the authorities in 2005 and 2006, but as of December 2007, the Jehovah's Witnesses have not been allowed to use the facilities.

Various minority religious organizations encountered similar difficulties in obtaining or renovating property. The mayor's office in Krasnodar continued to deny the Muslim community's request to build a mosque in the city of Sochi.

Following the 2005 rebel attack in Nalchik, the Republic of Kabardino-Balkariya closed five of the seven mosques in the capital city, Nalchik; they remain closed.

Some local and municipal governments prevented minority religious groups from obtaining venues for large gatherings and from acquiring property for religious uses.

There are no restrictions on individual worship in public or private.

Regional and local authorities as well as businessmen on a number of occasions refused to lease facilities to local Jehovah's Witnesses communities. In contrast to previous years, the Jehovah's Witnesses were able to hold all 53 regional conventions planned for the year. In July 2006 the Ivanovo city administration and the FSB forced the postponement of the July 2006 convention. In Moscow Oblast, which is a separate jurisdiction from the city of Moscow, the Jehovah's Witnesses reported that a hotel conference center, a cinema, and a cultural center, each of which previously had been used by the church, cancelled their leases. Despite the prevention and disruption of past assemblies, this year local authorities in Yekaterinburg and Archangelsk permitted an open meeting of Jehovah's Witnesses.

There are no legal prohibitions on missionary activities. There was societal pressure against proselytizing by non-Orthodox faiths, and some groups reported that missionaries had been harassed or attacked when proselytizing. For example, during the year the Jehovah's Witnesses reported three incidents in Moscow where members engaged in public ministry were attacked by persons to whom they were preaching. In all three cases, the Jehovah's Witnesses reported the incidents to the police, but the police declined to open criminal investigations. In 2006 the Jehovah's Witnesses reported approximately 50 incidents in which authorities briefly detained their members or other citizens while conducting lawful preaching activities.

Authorities either deported or denied entry to several religious workers with valid visas. In January 2006 authorities deported the founder and legal/spiritual advisor of the Unification Church in Moscow. He may not reapply for a visa for five years, despite having lived in the country since 1990.

Some religious personnel experienced visa difficulties while entering or leaving the country.

In 2005 the government denied entry to high-ranking British and Danish Salvation Army officials who sought to attend a church congress. In explaining its decision to deny entry, the Moscow city branch of the federal Ministry of Internal Affairs cited the provision of law under which foreigners may be denied entry "in the interests of state security."

Laws in three regions--Belgorod, Kursk, and Smolensk--forbid foreign visitors from engaging in missionary activity or preaching unless specifically authorized by their visas. According to local religious officials, the laws were not enforced.

In November Chechen President Ramzan Kadyrov called for all women in the republic to cover their heads with scarves. While officially this is nonbinding, several government institutions in Grozny reportedly posted signs forbidding women without headscarves from entering, and guards were enforcing the rule. Two universities in Chechnya reportedly barred women with uncovered heads from attending classes.

In 2005 nine female Muslim students at the Kabardino-Balkaria State University were briefly detained and interrogated because they were wearing hijab and violating university rules by practicing group study of the Koran. In 2005, in Maykop, Adygea Republic, police allegedly assaulted and apprehended a group of young Muslims, including the Maykop mosque's imam, as they were leaving a mosque; the imam stated that police beat them and questioned why they were wearing beards and observing Islamic norms of hygiene. After a night in detention, a judge ordered them released.

Since September 2006 schools in four of Russia's 85 regions required the teaching of a controversial *Foundations of Orthodox Culture* course; in many other regions, the course was taught as an elective.

In June a Moscow district court published a ban on the works of Said Nursi, a Turkish pacifist Islamic theologian. Religious and human rights leaders condemned the ban, which has been appealed. Vladimir Lukin, the human rights ombudsman, denounced the ban, saying that Nursi's works contained no trace of religious hatred or intolerance. In an open letter to the court, Lukin wrote that, "It is very important that we do not allow interference in the convictions and beliefs of millions of citizens on the poorly grounded, unproven pretext of fighting against extremism, as this really could provoke wide-scale violations of their right to freedom of belief."

Restitution of religious property seized by the Communist regime remained a problem, particularly for Muslim and Protestant groups. Many properties used for religious services, including churches, synagogues, and mosques, have been returned, and other restitution cases continued. The Russian Orthodox Church had greater success reclaiming prerevolutionary property than other groups, although it still had disputed property claims. In 2006 Muslims in Beslan appealed to the Presidential Council for Cooperation with Religious Associations to return the historic Cathedral Mosque to the Muslim community, which was occupied by a vodka-bottling plant and a bottle washing shop. The Jewish community was still seeking the return of a number of synagogues, religious scrolls, and cultural and religious artifacts, such as the Schneerson book collection, a revered collection of the Chabad Lubavitch, which the authorities claimed as part of Russia's cultural heritage. The Roman Catholic Church reported 44 disputed properties, including the Saints Peter and Paul Cathedral in Moscow.

The authorities permitted Orthodox chapels and priests on army bases and also gave Protestant groups limited access to military facilities. Authorities largely banned Islamic services in the military and generally did not give Muslim conscripts time for daily prayers or alternatives to pork-based meals. Some Muslim recruits serving in the army reported that their fellow servicemen insulted and abused them on the basis of their religion. In December the military appointed the first Jewish chaplain since 1917.

Societal Abuses and Discrimination

There were reports of societal abuses and discrimination based on religious belief or practice. Religious matters were not a source of social tension or problems for the large majority of citizens, but there were some problems between majority and minority groups, including incidents of harassment and violence.

Prejudices against non-Orthodox religions were behind manifestations of anti-Semitism and occasional friction with non-Orthodox Christian denominations. Because xenophobia, racism, and religious bigotry were often intertwined, it was sometimes difficult to determine which prejudice was the primary motivation behind discrimination against members of religious groups. Conservative activists claiming ties to the Russian Orthodox Church occasionally disseminated negative publications and held protest meetings against religions considered nontraditional, including alternative Orthodox congregations. Some Russian Orthodox clergy have stated publicly their opposition to any expansion of the presence of Roman Catholic, Protestant, and other non-Orthodox denominations.

Popular attitudes toward traditionally Muslim ethnic groups remained negative in many regions, and there were manifestations of anti-Semitism as well as societal hostility toward adherents of more recently established religions, such as the LDS Church, Jehovah's Witnesses, and Scientology. Ethnic tensions ran high in the predominantly Muslim Northern Caucasus, and there were problems in some cities outside that region. Government officials and journalists often labeled Muslim organizations "Wahhabi," a term that has become associated with extremism. The republics of Dagestan and Kabardino-Balkariya formally banned Wahhabism.

There were reports of mosques, Muslim community centers, and cemeteries being vandalized. For example, on March 3, a Muslim cemetery was vandalized in Kazantsevo village, Chelyabinsk region, by juveniles who tore crescent emblems from the grave markers. The boys were referred to juvenile inspectors. In another example, on April 19, a Muslim cemetery was desecrated in Kurgan.

In December 2006 a Yaroslavl court gave two teenage skinheads suspended sentences for inciting ethnic hatred after they threw molotov cocktails at a Yaroslavl mosque and a nearby parked car, and painted neo-Nazi graffiti on the mosque.

In 2005 vandals set fire to a two-story wooden building housing the Muslim Board of Komi and a mosque; there were no injuries. Vandals defaced mosques in Nizhniy Novgorod and Penza. In 2005 Muslim cemeteries in Moscow and Yoshkar-Oly, Mariy-El Republic were desecrated.

Reports of the harassment of evangelicals and Pentecostals decreased during the year. In contrast to previous reports about the vandalizing and burning of prayer houses in Nekrasovskoye, Buryatiya, Oshkar Ola, Khalsk, and Poldolsk, where authorities made no arrests, few such instances appeared to have occurred since December 2005, when Bishop Sergey Ryakhovskiy joined the Public Chamber. Nevertheless, African-Russian and African ministers of non-Orthodox Christian churches experienced prejudicial treatment, based apparently on a combination of religious and racial bigotry.

There continued to be cases of vandalism against non-Orthodox Christian churches reported during the year. For example, on January 6, vandals broke windows and threw smoke bombs into the LDS regional representational office in Samara. The nationalist Eurasian Youth Union claimed responsibility for the attack. In other examples, on March 26, a building belonging to the Emmanuel Church of Evangelical Christians in Moscow was set on fire and, on June 14, a swastika was painted on an information board of Pentecostal Church in Voronezh.

An estimated 250,000 Jews live in Russia, comprising less than 0.25 percent of the population, according to government sources and Jewish groups in Russia, Israel, and the United States. Some researchers suspect that the number is underreported due to the reticence of some Jews to publicly identify their religious or ethnic background. The Jewish population declined over the past two decades through large-scale emigration, but recent years have seen an overall influx of Jews as some emigrants have returned from Israel and other countries.

During the year racially motivated violent attacks against Jews decreased, while anti-Semitic abuses continued to be a problem, with the overall number of anti-Semitic incidents remaining about the same. There were several reports of vandals desecrating Jewish cemeteries and defacing Jewish religious and cultural facilities, sometimes combined with threats to the Jewish community. Anti-Semitic graffiti and leaflets appeared frequently in many regions. Anti-Semitism on television or in other mainstream media was infrequent and was more likely to appear in low-circulation newspapers or in pamphlets. Anti-Semitic materials on Russian-language Internet sites have increased. There was no evidence of state-sponsored anti-Semitism.

On June 11, in Ivanovo, skinheads shouting anti-Semitic slogans attacked two Jewish men.

In February five teenagers were convicted of murder by reason of ethnic hatred for the 2005 murder of Andrey Dzyuba in Yekaterinburg. A group of at least 15 teenagers attacked Dzyuba and dragged him to a cemetery where he was beaten and stabbed to death with a metal cross. The attackers received sentences ranging from five to ten years in prison, and ten underage attackers who participated in the beating, but not the murder, were not charged because they were minors.

In March 2006 a Moscow court sentenced Aleksandr Koptsev to 16 years in prison for attempted murder and inciting racial hatred after he attacked worshipers in a Moscow synagogue with a knife, wounding nine. An appeals court extended the original sentence of 13 years after finding that the trial court had failed to consider the ethnic hatred motive of the crime. A student attempted a copycat attack on a synagogue in Rostov-on-Don in January 2006, but security guards stopped him before he could harm anyone. An appeals court overturned his attempted murder conviction on the basis that he was mentally unfit to stand trial, and ordered him to undergo psychiatric treatment.

Skinheads and ultra-nationalists, usually acting in gangs, attacked persons in Russia during the year, but their main targets were foreigners and persons from the Caucasus or Central Asian ethnic groups.

Synagogues, Jewish community centers, and cemeteries were frequently vandalized during the year across the country. Police often did not investigate such incidents as hate crimes, instead calling them acts of "hooliganism."

Many synagogues and community centers were vandalized during the year, including in Baltiisk, Borovichy, Izhevsk, Khabarovsk, Kurgan, Lipetsk, Murmansk, Nizhniy Novgorod, Perovo, Petrozavodsk, Saratov, Samara, Taganrog, Tomsk, Vladivostok, and Voronezh. Jewish cemeteries were vandalized in Bryansk, Karelia, St. Petersburg, and Voronezh; a Holocaust memorial was defaced in Kaliningrad. Officials often classified these crimes as "hooliganism." In many cases where local authorities prosecuted cases, courts imposed suspended sentences. In some cases, however, the hate-crime motive was taken into consideration. In May Dmitry Levanov firebombed the Jewish center in Ulyanovsk and nailed a threatening note on its door with a knife. He was convicted and given a two year suspended sentence for inciting ethnic hatred.

In March and May, Jewish cemeteries were desecrated in the Voronezh and Bryansk regions. The incident in Voronezh was investigated and two men were convicted of committing a crime with the motive of ethnic, racial, or religious hatred. One was given a two-year suspended sentence, and the other was sentenced to two years in prison in light of his prior convictions. On October 8, in Krasnoyarsk, vandals desecrated 64 gravestones at a Jewish cemetery.

In 2005 and 2006, there were many similar reports of Jewish religious centers, community centers, and cemeteries being vandalized throughout the country.

There are many reports of anti-Semitic publications during the reporting period.

Anti-Semitic statements have been legally prosecuted, and the government has publicly denounced nationalist ideology and expressed support for legal action against anti-Semitic acts.

In June a court in Novosibirsk, Russia sentenced the publisher of a local newspaper to two years in prison for inciting anti-Semitism. He published articles that openly called for violence against Jews.

In April a trader in extremist books was arrested at a book fair in Moscow and charged with inciting ethnic, racial, and religious enmity. The police said that they were seeking to identify the publisher of these materials.

According to the Anti-Defamation League (ADL), there were several cases against the editors of regional newspapers for publishing anti-Semitic articles. In October 2006 Vladimir Vostryagov from Vladimir was found guilty of fueling ethnic discord. Vostryagov received a one-and-one-half year suspended sentence for publishing and distributing an unregistered *Vest* newspaper that called for the extermination of Jews. In November 2006 Uriy Ekishev, a writer from Syktyvkar, Komi Republic, was sentenced to one and one-half years of imprisonment for publishing anti-Semitic articles in *Stenogramma* newspaper and making anti-Semitic statements at a nationalistic rally.

In contrast to past years, there were no notable anti-Semitic statement from government officials and candidates in the State Duma elections. In 2005 some members of the State Duma and other prominent figures expressed anti-Semitic sentiments in a letter urging the prosecutor general to investigate Jewish organizations and initiate proceedings to ban them. The letter was criticized by several government leaders and, following the 2006 synagogue attack in Moscow, fewer public figures made anti-Semitic statements or were marginalized if they did.

In 2006 Nikolay Kurianovich, an Liberal Democratic Party of Russia (LDPR) Duma deputy, initiated and publicized a "list of the enemies of the Russian persons," which mostly featured Jewish names. On March 7, aides to Kurianovich were expelled from the State Duma chambers for wearing swastika armbands. Kurianovich declared their expulsion part of a "struggle against all that is Russian."

In May 2006 two Duma members reportedly made anti-Semitic comments while speaking at a St. Petersburg gathering organized by the Union of Russian Persons.

In 2005 approximately 500 persons, including 20 State Duma members, wrote to the Office of the Prosecutor General asking that he conduct an investigation of the country's Jewish organizations with the possibility of initiating proceedings to ban them. The letter charged that a Russian translation of a compilation of ancient Jewish law, the *Kitzur Shulchan Arukh*, incited hatred against non-Jews; the letter also accused Jews of ritual murders. The Ministry of Foreign Affairs condemned the letter, as did President Putin in remarks delivered in Krakow in 2005. The State Duma passed a resolution condemning the letter.

A Moscow district prosecutor investigated both the publication of the Jewish Law translation and the "Letter of 500," but closed both investigations without bringing charges.

The human rights ombudsman for the Komi Republic was placed under investigation by the local prosecutor's office after making an anti-Semitic comment in a December 2006 interview with a local paper.

The Euro-Asian Congress noted that in 2006 prosecutors recorded the highest number of attempts to prosecute purveyors of anti-Semitic propaganda. While the government publicly criticized nationalist ideology and supported legal action against anti-Semitic acts, the reluctance of some lower-level officials to call such acts anything other than "hooliganism" remained an impediment.

The support of federal authorities, and in many cases regional and local authorities, facilitated the establishment of new Jewish institutions. During the year President Putin publicly criticized anti-Semitism and supported the establishment of the Museum of Tolerance being planned by the Federation of Jewish Communities of Russia. On June 26, Arkadiy Gaydamak, president of the Congress of Jewish Religious Organizations and Associations of Russia, and Chief Rabbi of Russia Adolph Shayeveich signed a contract regarding the construction of a Moscow Jewish community center. Work began on the \$100

million (2.7 billion rubles) complex on land donated by the Moscow city government to house Jewish community institutions, including a school, a hospital, and a major new museum devoted to the history of the country's Jews, the Holocaust, and tolerance.

For a more detailed discussion, see the *[2007 International Religious Freedom Report \(/2009-2017.state.gov/j/drl/rls/irf/2007/\)](https://2007.state.gov/j/drl/rls/irf/2007/)*.

d. Freedom of Movement within the Country, Internally Displaced Persons, Protection of Refugees, Stateless Persons

The law provides for these rights; however, the government placed restrictions on freedom of movement within the country and on migration.

All adults must carry government-issued internal passports while traveling internally, and they must register with the local authorities within a specified time of their arrival at a new location. Authorities often refused to provide governmental services to individuals without internal passports or proper registration. The official grace period for registration given to an individual arriving in a new location is 90 days; however, darker skinned persons from the Caucasus or Central Asia were often singled out for document checks. There were credible reports that police arbitrarily imposed fines on unregistered persons in excess of legal requirements or demanded bribes from them.

Although the law gives citizens the right to choose their place of residence freely, many regional governments continued to restrict this right through residential registration rules that closely resembled Soviet-era regulations. Citizens moving permanently must register to reside, work, or obtain education for their children in a specific area within seven days of moving there; those who are temporarily residing in a new place may stay for only 90 days before they must register. Citizens changing residence within the country and migrants, as well as persons with a legal claim to citizenship who decide to move to the country from other former Soviet republics, often faced great difficulties or simply were not permitted to register in some cities. Corruption in the registration process in local police precincts remained a problem. There were frequent reports of police demanding bribes when processing registration applications and during spot checks for registration documentation. In 2004 Krasnodar Kray authorities enacted a law that extended the definition of "illegal migrant" to include unregistered Russian citizens as well as foreign citizens and stateless persons.

An anti-Georgia campaign following the September 2006 diplomatic row between Russia and Georgia, resulted in the deportation of approximately 4,000 ethnic Georgians, three of whom died in detention.

In Krasnodar Kray, Meskhetian Turks without Russian passports were denied the right to register, which deprived them of all rights of citizenship, and prevented them from working legally, leasing land, or selling goods. Because of the difficult conditions in Krasnodar, about 23,000 Meskhetian Turks applied to emigrate. With the departure of 11,316 Meskhetian Turks since 2004, facilitated by the Russian Federation, human rights groups reported a significant decline in arbitrary fines, and other forms of harsh treatment used previously by authorities against the community.

The law provides for freedom to travel abroad and citizens generally did so without restriction; however there were exceptions. Citizens with access to classified material needed to obtain police and FSB clearances to receive an external passport.

The law prohibits forced exile, and the government did not employ it. The law provides all citizens with the right to emigrate and this right was generally respected.

Internally Displaced Persons (IDPs)

At year's end 13,853 IDPs from Chechnya were in temporary settlements or in housing in the private sector in Ingushetiya; 4,906 Chechens were in Dagestan, and approximately 30,000 Chechen IDPs reportedly were elsewhere in the country; and an estimated 8,718 Chechens were living as IDPs within Chechnya itself.

Officials stated publicly that they would not pressure or compel IDPs to return to Chechnya. However, the UNHCR reported that government officials stated their intention to deregister those IDPs who had received compensation from federal assistance lists and indicated that 52 families were deregistered in June 2005. Those who were deregistered faced the threat of eviction from their accommodations in temporary settlements, despite their willingness to pay for the accommodation. Although some of the inhabitants chose to remain in Ingushetiya, the UNHCR estimated that 70 to 75 percent chose to return to Chechnya despite the inadequacy of temporary lodging. For example, in August the government of Chechnya submitted to the UNHCR a list of 169 IDP families, largely from Ingushetiya, willing to return to Chechnya. The UNHCR reported that 1,141 IDPs returned to Chechnya from Ingushetiya this year.

The UNHCR asked to set up an office in Grozny to ensure that those returning were provided international standards of safety and dignity, but the government repeatedly refused permission.

The UNHCR reported that, despite passport checks and occasional security sweeps that continued in IDP settlements, IDPs were generally able to remain in Ingushetiya without any pressure to return. However, other international and domestic organizations expressed concerns during the year over the government's treatment of Chechen IDPs in Ingushetiya. In 2005 the Norwegian Refugee Council noted that IDPs were frequently denied status as "forced migrants" under Russian law, which severely limited their access to social benefits and protection. Others living in regions outside Chechnya were often denied residential registration by local authorities, in what the council characterized as discriminatory practices against Chechens.

In April 2006 Chechen President Kadyrov announced that all temporary accommodation centers in Chechnya should be closed because they fostered drug addiction, prostitution, and other criminal behavior and because many persons living there could return to their homes. According to the UNHCR, five temporary accommodation centers across Chechnya were closed during the year, with many of those residents moving to other centers.

Protection of Refugees

The law provides for granting of asylum or refugee status in accordance with the 1951 UN Convention relating to the Status of Refugees and its 1967 protocol, but the government has not established a system for providing protection to refugees. In practice, the government generally provided protection against "refoulement," the return of persons to a country where there was reason to believe they feared persecution; however, it rarely granted asylum. Any decision of a migration service could be appealed to a higher-ranking authority or to a court. During the appeal process, the person received the rights of a person whose application for refugee status was being considered. If a person did not satisfy the criteria for refugee status but could not be expelled or deported for humanitarian reasons, he could be granted temporary asylum. Individuals who sought entry into the country without proper documentation and who sought to claim asylum were often denied access to the Federal Migration Service by border guards and Aeroflot airlines and often returned to their countries of origin, including in some cases to countries where a well-founded fear of persecution could be demonstrated. The UNHCR and NGOs stated that many asylum seekers at times faced detention, deportation, fines by police, and racially motivated assaults, which sometimes even led to the loss of life.

The government cooperated with the UNHCR and the International Organization for Migration (IOM). Both organizations assisted the government in trying to develop a more humane migration management system. By year's end, the government had registered 3,369 asylum applicants and refugees, up from 3,196 cases in 2006. The government acted more expeditiously and with greater leniency in cases involving applicants who had been citizens of former Soviet countries than in the case of applicants from other countries. Officials continued to demonstrate widespread ignorance of refugee law.

Jong Koun Tchona, a North Korean seeking asylum in Russia, disappeared in November after being called to a Federal Migration Service office in Moscow. He later escaped from a detention facility in Khabarovsk, from which he understood he was to be forcibly repatriated to North Korea. The intervention of NGO Civic Assistance, the UNHCR, and the human rights ombudsman prevented Jong's deportation, and at year's end he and his Russian-citizen common-law wife were in hiding while seeking resettlement in a third country.

Russian authorities deported Uzbek citizen Rustam Muminov in October 2006 after a local court in Lipetsk had refused to order his extradition to Uzbekistan and ordered him set free. Muminov was deported after being arrested in Moscow, despite seeking refugee status. A Moscow court later ruled in October 2006 that the deportation had been illegal, and migration officials later admitted the deportation had been a mistake.

In 2006 Bakhrom Dadazhenov was accused of associating with an extremist group in a high-profile case in Arzamas, Nizhniy Novgorod region. The court proceedings were reportedly based on fabricated evidence. The intervention of NGO Civic Assistance prevented the Dadazhenov family's deportation, and they were seeking asylum in a foreign country.

In November 2006 two brothers from Uzbekistan, Dolimbek and Davronbek Gulomov, were deported from Krasnoyarsk for allegedly violating Russian immigration laws and were handed over to Uzbek authorities. The two, who had lived in Krasnoyarsk since the beginning of 2006, were arrested in September on charges of participating in the banned Islamic party Hizb ut-Tahrir (HT).

An FSB spokesperson reported to the press that 19 Uzbek citizens had been extradited in 2006. The fate of many deportees is unknown to their families.

In 2005 authorities in Tatarstan deported an Uzbek student, Marsel Isayev, to Uzbekistan. He was reportedly pressured by Russian authorities to provide false evidence against classmates accused of being members of the banned Islamic party HT. Isayev appealed his deportation unsuccessfully to the courts. An intervention by Human Rights Ombudsman Lukin was also unsuccessful. Isayev's family remained in Tatarstan.

The UNHCR and NGOs reported that undocumented asylum seekers continued to face problems with law enforcement bodies over their status in the country. The government does not issue documents to asylum seekers who are awaiting review of their requests for asylum. They remained vulnerable to fines and detention, and were denied access to government assistance.

At Moscow's Sheremytevo Airport, authorities systematically deported improperly documented passengers before they were able to file asylum claims with the Federal Migration Service, including persons who demonstrated a well-founded fear of persecution in their countries of origin. Airlines were fined if an undocumented passenger was admitted to the country but not if the passenger was returned to the country of origin. The treatment of asylum seekers in the transit zone reportedly was harsh.

To the UNHCR's knowledge, no asylum seeker arriving at Sheremytevo-2 Airport had been accepted since at least 1999. Most cases involved labor migrants entering or leaving the country, but a few cases involved asylum seekers. While federal law provides for education for all children, regional authorities frequently denied access to schools to children of asylum seekers if they lacked residential registration. Authorities frequently denied migrants and Russian citizens the right to work if they did not have residential registration. Refugees also cannot work legally if they are not registered, and cannot obtain registration if they are not officially accepted as refugees by the government.

The law exempts the estimated 1.5 million former Soviet citizens residing in the country without benefit of citizenship from having to meet most requirements for naturalization. In January 2006 a new law extended the deadline for former Soviet citizens to obtain citizenship until January 1, 2008. In addition, the new law extended the right to seek citizenship to those who obtained a residence permit in the country after January 1, 2002, increasing the number of persons potentially eligible for citizenship.

International agreements permit persons with outstanding warrants from other former Soviet states to be detained for periods of up to one month while the prosecutor general investigates the nature of those warrants. This system was reinforced by means of informal links among senior law enforcement and security officials in many of the republics of the former Soviet Union. Human rights groups continued to allege that this network was employed to detain opposition figures from the other former Soviet republics without legal grounds.

In 2005 authorities detained 12 Uzbek citizens, one Kyrgyz citizen, and one ethnic Uzbek with Russian citizenship on a request from Uzbek authorities following the violence in Andijon, Uzbekistan. The Russian citizen was subsequently released and left for a third country after Russian officials moved to revoke his citizenship. Russia refused to grant asylum or refugee status to the remaining 13 persons. The ECHR successfully intervened to prevent their deportation, and on March 5, they were released from detention. After the Federal Migration Service informed them that it would not grant them temporary asylum in Russia, the Uzbeks appealed the decision to the ECHR. The government permitted them to remain in Russia pending the result of the appeal. On December 5, Russian officials administratively expelled Tyumen resident Abdujani Kamaliyev, an Uzbek married to a Russian citizen, to Uzbekistan even though a domestic court had ruled against his extradition in 2006 and this was in violation of a December 3 ECHR ruling, objecting that he may be subjected to torture if returned to Uzbekistan.

On March 29, the government deported Falun Gong practitioner Ma Hui and her eight-year-old daughter Ma Jing in spite of their UN refugee status and a scheduled March 30 district court hearing on Ma Hui's asylum claim. Two weeks later the government deported Gao Chunman, a disabled 73-year-old Falun Gong practitioner, also with UN refugee status.

On August 30, a Moscow district court ordered the extradition of another Uzbek, Yashin Dzhurayev, who claimed that he had been persecuted for religious reasons in Uzbekistan.

Two other Uzbek citizens were detained in Novosibirsk in 2005 under a similar request from Uzbek authorities.

Section 3 Respect for Political Rights: Citizens' Right to

Change Their Government

The law provides citizens with the right to change their government peacefully in regularly scheduled national and regional elections, although their ability to exercise that right has lessened considerably in recent years by changes in the electoral law, a change from elected to appointed governors, and increased government control of mass media. Little competition existed in the system, which was dominated by the propresidential United Russia party. Authorities often blocked the political opposition from exercising their right to freedom of assembly.

Elections and Political Participation

In December, Russia held elections for the State Duma in which the United Russia party received a two-thirds constitutional majority, and a total of four parties exceeded the seven percent threshold for gaining seats in the Duma. International observers concluded that the elections were not fair and failed to meet standards for democratic elections. After the Central Election Commission placed delays and unprecedented restrictions on the number of international observers, the Office for Democratic Institutions and Human Rights (ODIHR) decided it was not able to send an observer mission. A team of parliamentarians from the Parliamentary Assembly of the Council of Europe, the Parliamentary Assembly of the OSCE, and the Nordic Council observed the elections. The teams concluded that the elections were "not fair and failed to meet many OSCE and Council of Europe commitments and standards for democratic elections." They noted that the elections took place in an atmosphere which seriously limited political competition. Frequent abuses of administrative resources, media coverage strongly in favor of United Russia, and the revised election code combined to hinder political pluralism.

The OSCE representative on freedom of the media reported numerous media freedom violations during the elections, including harassment of media outlets, legislative limitations, and media bias in political coverage, which prevented equal media access. Even though some of its observers were impeded, the voter-rights NGO GOLOS reported numerous electoral violations and problems including an "unprecedented" amount of absentee ballots, collective voting under pressure, multiple voting by the same voters, and vote counting violations. GOLOS observers, however, reported good organization of voting procedures and that secrecy of voting was mostly observed.

Fifteen regions held legislative elections in March and April. Many political actors and analysts claimed that some parties, most often the United Russia party, had unfairly used administrative resources to sway results. Many observers viewed these elections as flawed, with numerous irregularities and abuses during the election process. There were problems in some regions with unequal access to the media and the use of administrative resources by incumbents to support their candidacies. The counting of votes in most locations was professionally done but there were exceptions, notably in Dagestan. In several regions, opposition political parties such as Yabloko and the Union of Right Forces (SPS) were removed from the ballot after the election commissions cited violations in elections procedures. In February, the St. Petersburg elections commission cited a handwriting expert and claimed that hundreds of the 40,000 signatures on Yabloko's registration application were forgeries. The commission gave Yabloko only two days to refute the charges with signed affidavits and copies of passports of those signatures that it ruled invalid. Yabloko could not comply with this request and was removed from the ballot. SPS was removed from ballots in Vologda and Pskov.

The December State Duma elections were marked with apparent fraud in many of the North Caucasus republics and other regions. In the 2005 election, the Council of Europe alleged that the official voter turnout numbers were artificially high and this trend reportedly continued in 2007 elections. Chechnya reported 99.5 percent voter turnout, with 99.5 percent of the votes going to the United Russia party; Ingushetiya reported 98.3 percent voter turnout, with 98.8 percent of the votes for United Russia; and Kabardino-Balkaria reported 97 percent turnout, with 96.5 percent of the votes for United Russia. In Ingushetia, with 159,000 registered voters, a protest movement called "I did not vote" collected 87,340 signatures from registered voters who said that they had not voted in the December elections.

Laws enacted in 2005 and 2006, particularly those eliminating direct gubernatorial elections, contributed to the consolidation of the government's political power. Further changes to the election law made in 2006, created a strict party list system, banned electoral blocs, raised the threshold for party representation in the State Duma to 7 percent of the vote, and eliminated the minimal voter turnout provision. The changes worked to the advantage of parties already represented in the State Duma, particularly the propresidential United Russia, and have had the effect of reducing the number of competitive parties. The electoral law also bans nonpartisan domestic observation of federal elections, which makes it difficult for NGOs to observe elections.

The law provides that republic presidents and regional governors be nominated by the president subject to confirmation by regional legislatures. If a regional legislature fails to confirm the president's nominee three times, the legislature may be dissolved. The president also acquired the power to remove regional leaders in whom he had lost confidence, including those who were popularly elected. By year's end no regional legislature has failed to confirm the president's nominee. The law gives the president significant influence over the Federation Council, since regional leaders selected by the president in turn appoint half of its members. In 2005 the government enacted a law that allows political parties that have won elections to regional parliaments to propose their own candidates for head of a region subject to approval by the president and that region's legislature.

Several other provisions of the election law were amended in 2006: the option "against all candidates" was eliminated from ballots; early voting was eliminated; a mandatory minimum voter turnout was eliminated; circumstances under which a candidate may be removed from the ballot (including for vaguely defined "extremist" behavior) were expanded; and "negative" campaigning was banned.

Political parties historically have been weak. Although the law includes a number of measures to enlarge the role of political parties, particularly of established political groupings, it also gives the executive branch and prosecutor general broad powers to regulate, investigate, and close parties. Other provisions limit campaign spending, set specific campaign periods, establish conditions under which candidates can be removed from the ballot, and provide for restrictions on campaign materials. To register as a political party, the law requires groups to have at least 50,000 members with at least 500 representatives in half of the country's regions and no fewer than 250 members in the remaining regions, making it difficult for smaller parties to register.

Prospective presidential candidates from political parties that are not represented in the Duma must collect no less than two million signatures from supporters throughout the country to be registered to run for president. Independent candidates also are required to submit signatures to the CEC to be certified to run. A candidate is ineligible to run if more than 5 percent of signatures are found to be invalid by the Central Election Commission. Parties that are represented in the Duma can nominate a presidential candidate without having to collect and submit signatures.

As of October, according to the Central Election Commission chief Vladimir Churov, three of the 14 parties wanting to run in the December State Duma elections were disqualified based on alleged problems with their registration documents.

Before the March regional elections, in December 2006 the acting head of the Federal Registration Service announced that, of the 35 political parties that applied for re-registration in accordance with the amended and more demanding law, only 19 passed the inspection, although two decided to register as "public associations." As a result, the 15 parties that did not pass the inspection must reregister as public organizations, movements, or NGOs or be dissolved through court procedures.

In July 2006 the government enacted the law "On Countering Extremism," increasing concerns among many that the law may restrict election related activities of political parties, the media, and NGOs and discourage criticism of the government. The law was used in some cases to stifle opposition political parties during the 2007 elections. For example, the law was used against campaign materials for the political opposition, but not for materials of the ruling United Russia party.

On April 16 the FSB began an investigation of Other Russia member Garry Kasparov for inciting extremism by encouraging radio listeners to attend an opposition rally in St. Petersburg. In December 2006 government agents raided the offices of the political organization United Civil Front headed by Garry Kasparov. The officers had an order to search the premises due to suspicions of "extremist activity," and seized books and material promoting the "March of the Dissenters," an antigovernment demonstration. No charges were ultimately brought, but some viewed the incident as an example of the government was attempting to use the new law on extremism to intimidate the opposition. The law was also used by public figures to intimidate their critics.

In December 58 women won seats in the 450-member State Duma; there were nine women in the Federation Council. Three women were deputy committee chairs. Valentina Matviyenko, governor of St. Petersburg, was the only woman to lead one of the 85 regions of the country.

National minorities took an active part in political life; however, ethnic Russians, who constitute approximately 80 percent of the population, dominated the political and administrative system, particularly at the federal level.

Government Corruption and Transparency

Corruption is a widespread problem in Russia and studies have found that it increased in the past year. The World Bank's worldwide governance indicators reflected that corruption was a severe problem. The government designated the fight against corruption and the enforcement of law as priorities, and while the law provides criminal penalties for official corruption, the government acknowledged that it has not implemented the law effectively, and officials frequently engaged in corrupt practices with impunity. Corruption was widespread throughout the executive, legislative, and judicial branches at all levels of government. Manifestations included bribery of officials, misuse of budgetary resources, theft of government property, kickbacks in the procurement process, and extortion. The NGO INDEM (Information Science for Democracy) reports that other official institutions, such as the higher education system, health care, the military draft system, and the municipal apartment distribution system were also corrupt.

Overall, initiatives to address the problem, either through regulation, administrative reform, or government-sponsored voluntary codes of conduct, have made little headway in countering endemic corruption. While there were prosecutions related to bribery, the lack of enforcement in general remained a problem. In addition, bribery and other corruption issues are investigated by the Ministry of Internal Affairs and the Federal Security Service, both of which were widely perceived as corrupt.

Under the criminal code, giving and receiving bribes are criminal acts punishable by up to 12 years of incarceration; a person who pays a bribe is relieved of criminal liability if the bribe was extorted from him or if he voluntarily informs law enforcement about it.

From January to October, according to Deputy Foreign Minister Alexander Yakovenko, more than 37,000 corruption crimes, including bribery and corrupt business practices, were detected by the Ministry of Internal Affairs. From January to November, there were 11,119 cases of bribery of government and municipal officials alone, a six percent increase from the same period of last year. Of these cases 9,127 persons faced criminal investigations and 5,288 were sentenced, a 10.3 percent increase from the same period in 2006. The INDEM foundation estimates that millions of corruption-related offences were committed every year and cost the country \$300 billion (approximately 7.36 trillion rubles), almost equal to the country's entire federal budget.

Some high-level officials were charged with corruption this year, but most anticorruption campaigns were limited in scope and focused on lower-level officials. Allegations of corruption were also used as a political tactic, which made it more difficult to determine the actual extent of corruption.

In this year's highest-profile corruption case, Deputy Finance Minister Sergey Storchak was arrested on suspicion of preparing to embezzle \$43 million (more than 1 billion rubles) from the state budget. The case, which some observers charged may be politically motivated, remained delayed at year's end; in the meantime, Storchak was considered a flight risk and remained in detention in Moscow.

The former governor of Nenets Autonomous Region, Alexey Barinov, was convicted of diverting state money for his personal use, but was released with a three-year suspended sentence. Similarly, the former vice governor of Novgorod region, Nikolai Ivankov, was convicted of charging his personal vacations to the regional budget, but was given a three-year suspended sentence and a fine of \$205 (5,000 rubles).

Togliatti Mayor Nikolay Utkin was charged three times this year for abuse of power, bribery, and illegal land transfer.

In the Russian Far East, Amur Oblast governor Leonid Korotkov and Vladivostok mayor Vladimir Nikolayev were charged with corruption and abuse of office in 2006. Nikolayev was released this year after the Vladivostok City Court sentenced him to 4.5 years suspended imprisonment.

In March Aleksandr Kislyakov, former deputy governor of the Orel region, was sentenced to seven years in prison for receiving a bribe of \$4,100 (100,000 rubles).

In April 2006 a Moscow city court sentenced federal tax inspector Oleg Alekseyev to 10 years and Central Bank lawyer Aleksey Mishin to eight years in prison for bribery and extortion. They were each ordered to pay a fine of \$40,000 (one million rubles). Alekseyev was videotaped taking a \$1 million (26.5 million ruble) bribe to eliminate tax charges against a commercial bank in collusion with Mishin.

In August 2006 a senior auditing official in the Ministry of Industry and Energy was sentenced to seven years in prison for taking bribes.

In 2006 the head of Russian customs in the Far East, Ernest Bakhshetsyan, was arrested over alleged improprieties in office. Observers believed that the charges were concocted against Bakhshetsyan for attempting to crack down on smuggling in Primorye.

The law authorizes public access to all government information unless it is confidential or classified as a state secret. Government refusal to provide access to open information, or the classification of information as a state secret without cause, has been successfully contested in court. However, access to information was often difficult and subject to prolonged bureaucratic procedures.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

Domestic and international human rights groups operated in the country, investigating and publicly commenting on human rights problems, but official harassment continued, and the operating environment for these groups was restricted. Authorities increasingly harassed many NGOs that focused on politically sensitive areas, and other official actions and statements indicated a low level of tolerance for unfettered NGO activity, particularly for NGOs that received foreign funding and reported on human rights violations. NGOs operating in the Northern Caucasus were severely restricted.

An estimated 20 to 25 percent of the approximately 450,000 registered public associations and nongovernmental, noncommercial organizations were regularly active. The vast majority engaged in social or charitable activities, although many worked to influence policy and was critical of the government. There were several dozen large NGO umbrella organizations as well as thousands of small grassroots NGOs. There was often a large gap between these two categories of NGOs in terms of their organizational capacity. In the regions, NGO coalitions continued to advocate on such issues as the rights of the disabled and of entrepreneurs, environmental degradation, violations by law enforcement authorities, and the war in Chechnya.

In 2006 the government enacted legislation that strictly regulates NGOs and requires them to register with the Federal Registration Service. The law has more stringent registration requirements for local affiliates of foreign NGOs than for domestic NGOs, but requires all NGOs to file extensive reports on their structure, activities, leadership, and finances. The law provides intrusive means for government officials to scrutinize NGOs, including "public associations," but provides the NGOs with only limited procedural protections. The law grants the Federal Registration Service discretion to deny registration or to request that the courts close organizations based on vague and subjective criteria.

For example, the Dutch Russia Justice Initiative was twice refused registration in 2006 but during the year was finally able to register.

Starting this year, all NGOs were required to submit periodic reports to the Federal Registration Service (FRS) that disclose potentially sensitive information, including sources of foreign funding and detailed information as to how funds are used. As a result, NGOs stated that they were increasingly cautious about receiving foreign funds; while they still in many cases received foreign funds, many were restricting their activities to less sensitive issues. The FRS has the authority to audit organizations; in May, it audited the prominent human rights NGO Memorial International in a regularly scheduled inspection. FRS found several violations of the Russian legislation, especially with regard to the society's charitable activity, and issued a \$61,000 (1.5 million ruble) fine, which Memorial's lawyers successfully appealed.

Observers believed the government applied the NGO law to target some human rights organizations, such as cases opened against several NGOs in St. Petersburg that could result in their closure.

The July 2006 amendments to the law on extremism have been used to restrict activities of political parties, the media, NGOs, and some criticism of the government. The revised law expands the definition of extremist activity to include public libel of a government official or his family, as well as public statements that could be construed as justifying or excusing terrorism.

The authorities continued to target the Russian-Chechen Friendship Society (RCFS), which it ordered closed in October 2006. On January 23, the Supreme Court upheld the judgment of the Nizhniy Novgorod regional court and ruled to liquidate the RCFS. The RCFS had urged negotiations between the government and Chechen rebels to settle the conflict and reported on human rights abuses perpetrated by both sides of the conflict. In February 2006 RCFS Executive Director Stanislav Dmitriyevskiy was convicted of inciting racial and ethnic hatred and given a two-year suspended sentence and four years probation for publishing statements by Chechen rebel leaders. The authorities warned the RCFS that the NGO law prohibited persons convicted of extremist crimes from leading an NGO. The FCRS refused to replace Dmitriyevskiy, and the authorities moved to close the RCFS. Dmitriyevskiy appealed his conviction to ECHR, which had not ruled on the appeal by year's end.

The RCFS has since registered in Finland and has continued to operate in Russia. In April Dmitriyevsky participated in the March of the Dissenters. On August 12, his sentence was amended to provide that his suspended sentence could be revoked if he commits more than one administrative violation within a 12-month period. RCFS offices in Nizhniy Novgorod were raided in 2005 and separate criminal and tax cases were opened against the RCFS executive director and the organization.

In 2006 the Nizhniy Novgorod Human Rights Society resumed its activities, reportedly as a result of a campaign by international organizations. In 2005 authorities ordered the closure of the society, a partner organization of the RCFS, on the grounds that it did not submit necessary documentation of its activities to the Ministry of Justice.

The government continued to scrutinize organizations that it considered to have an opposition political agenda. Numerous human rights and opposition groups reported politically motivated hostility from the government. During the year the government attempted to damage the public image of the NGO community with statements that NGOs were suspicious organizations funded by foreign governments. Government accusations that implied connections between foreign-funded NGOs and alleged espionage by resident diplomats increased public perceptions that NGOs served foreign interests and fuel instability.

A number of indirect tactics were applied to suppress or shut down domestic NGOs, including creative application of various laws and harassment in the form of investigations and raids ostensibly to check for pirated software.

In June the government seized the computers and financial records of the Educated Media Foundation (EMF), also known as Internews Russia, an NGO promoting professional and independent media. The seizure was allegedly part of its investigation of EMF director Manana Aslamazyan, who was charged with an administrative violation when she failed to properly declare the currency she was bringing into the country. Authorities subsequently charged her with a criminal offense. The government also used this as a reason to allege criminal activities by the NGO and to seize its equipment and effectively stop its operations.

In 2004 the Prosecutor's Office in Ingushetiya initiated a case against the human rights NGO Chechen Committee for National Salvation (CCNS) alleging that its press releases accusing local authorities of violating human rights constituted extremist materials. In October 2004 a district court in Nazran dismissed the case, but in February 2005 the Ingushetiya Supreme Court reinstated it. The new trial started in April 2006 and was ongoing at year's end.

In 2005 State Duma deputy Nikolay Kuryanovich, who was criticized in a report by the Moscow Bureau for Human Rights (MBHR), sent a letter to the government asking for the MBHR to be closed and accusing it of collaboration with foreign intelligence. In response to Kuryanovich's letter, several inspections were conducted by the Federal Tax Service and the Prosecutor General's Office, which did not find grounds to initiate a criminal case against the MBHR. The case has not been closed, but the tax service had made no claims by year's end.

Pressure on human rights NGOs and activists continued in the Autonomous Republic of Bashkortostan during the year. In April, in Ufa (Bashkortostan), an unidentified man beat and injured a representative of the NGO International Standard in April 2007. Despite a police and hospital report, authorities did not open an investigation. In 2006 the state registration agency forced the International Standard, which received funding from abroad, to suspend its activities for a month, citing technical irregularities. The NGO was forced to amend its charter and reregister its legal address; foreign funding has essentially ceased due to new regulations.

Human rights activist Yevgeniy Basyrov left Russia to escape arrest after he testified this year on behalf of fellow human rights activist Nikolay Gusak. Gusak was convicted on three counts of verbal abuse during the year and received sentences ranging from 15 days to a month. He was beaten badly by criminal cellmates in the town of Tuimazy, Bashkortostan.

There were no further official actions during the year regarding Open Russia, an NGO that was founded and heavily funded by former Yukos CEO Mikhail Khodorkovskiy. Open Russia's Moscow office was raided in 2005 by authorities, who seized documents reportedly related to an ongoing investigation of money laundering and embezzlement by Yukos employees. Authorities did not bring charges against Open Russia. After Yukos declared bankruptcy, funding to Open Russia was halted, and the NGO closed. In March 2006 the Basmanniy district court of Moscow froze Open Russia's bank accounts. In April 2006 Open Russia stopped all activities except for the Club of Regional Journalists.

The government subjected the Center for International Legal Defense (CILD), which was headed by one of former Yukos CEO Mikhail Khodorkovskiy's lawyers, to irregular administrative inspections. In a note to Ombudsman Lukin, CILD complained about a January visit to their office by an officer of the Ministry of Internal Affairs' Tax Offenses Department in Moscow. The officer questioned the center's director and deputy director about CILD's activities and asked if they worked on any Chechen cases. Later in the month, the officer visited CILD with orders summoning the executives to the Tax Offenses Department. In July 2006 the Federal Tax Service filed a claim against CILD after it was audited by tax inspectors; the center appealed the claim. The center was founded in 1994 to assist victims of human rights violations through international legal mechanisms. The tax claims and fines against CILD amounted to approximately \$170,000 (4.6 million rubles), which if collected could potentially put the NGO out of business. The Federal Tax Service claimed that the CILD failed to pay taxes on \$500,000 (approximately 13.5 million rubles) in foreign grants received between 2002 and 2004.

Regional human rights groups generally received little international support or attention and often suffered from inadequate funding. Due to limited resources, the NGO reporting requirements created a particularly onerous burden. They reported that at times local authorities obstructed their work. While these groups were generally free to criticize government and regional authorities, authorities in some areas were intolerant of criticism. Local human rights groups in the regions had some opportunities to interact with legislators to develop draft laws; however, local authorities excluded some organizations from the process entirely.

The government subjected international human rights and humanitarian groups, particularly those involved in promoting democracy during the election year, to increasing pressure, such as foreign workers facing trouble with visas, FSB officers arriving with questions that intimidated the members, and pressure to curtail more sensitive activities. In the view of some observers, NGOs working in the North Caucasus were particularly vulnerable to interference.

A foreign NGO reported that central authorities continued to pressure it and its domestic partner, the VOICE Association for Voters' Rights, during the year.

Government and legislative officials recognized and consulted with some NGOs, primarily those focused on social issues, and select groups participated, with varying degrees of success, in drafting legislation and decrees. Officials, such as Human Rights Ombudsman Vladimir Lukin and the chairman of the Presidential Council on Promoting the Development of Institutions of Civil Society and Human Rights, Ella Pamfilova, regularly interacted and cooperated with NGOs.

In the Jewish autonomous republic, Amur Oblast, and selected regions in Primorskiy Kray, NGOs worked with local governments to encourage citizen participation in local self-governance on issues related to implementation of the law on local governance.

Some international NGOs maintained small branch offices staffed by local employees in Chechnya; however, all were based outside of Chechnya. In a meeting with NGOs on August 2, Chechen President Kadyrov stated that all foreign NGOs that worked in Chechnya should move their offices from neighboring republics to Grozny, register with the tax inspectorate, and employ local citizens. Critics contended that this enabled Kadyrov to keep tighter control over the NGO sector.

By law, every person in the country may bring cases to the ECHR for alleged human rights violations after 1998, provided they have exhausted "effective and ordinary" appeals in the courts. This provision was usually satisfied by two appeals (first and cassation) in courts of ordinary jurisdiction or three (first, appeal, and cassation) in the commercial court system. More

than 20,000 cases were pending against Russia at the ECHR at the end of the year. The ECHR which received more than 10,000 complaints involving Russia, ruled against Russia in 175 of the 192 cases on which it reached a decision during the year.

The government generally paid financial judgments ordered by the ECHR in a timely fashion; however, it issued blanket refusals in response to ECHR requests for disclosure of the domestic case files relating to alleged gross violations in Chechnya. The ECHR criticized this failure of disclosure.

Government human rights institutions challenged local government activities, promoted the concept of human rights, and intervened in selected abuse complaints. Human Rights Ombudsman Vladimir Lukin commented on a range of human rights problems, such as the treatment of children, the rights of prisoners, hazing in the military, and religious intolerance. During the year Lukin criticized intolerance and the growing wave of ethnic, religious, sociopolitical, and human hatred in the country. Lukin defended the rights of participants in the dissenters' marches, noting that the constitution states clearly that citizens have a right to participate in meetings and marches, and that only notification of the authorities is required to hold meetings and marches, not permission from the government. Lukin's office intervened in August to help secure the release from an Apatity psychiatric institution of "Other Russia" activist Larisa Arap, who had been involuntarily hospitalized. Lukin assembled a panel of independent experts who examined Arap and testified that she should be released. The ombudsman's annual report noted that his effectiveness was limited because he was not empowered to propose legislation that could address human rights problems. He also noted the difficulty of getting some government officials to respond to inquiries from his office. In 2006, for example, the ombudsman intervened in more than 1,500 cases of prisoner abuse, but only 123 cases were satisfactorily resolved by prison officials.

The Ombudsman's office had approximately 200 employees and several specialized sections responsible for investigating complaints. During the year the office published reports on human rights issues, such as the rights of children with disabilities. Lukin's role remained primarily consultative and investigatory, without powers of enforcement. There was no information available on the investigations proposed by Lukin during the year. As of mid-2007, 40 of the country's 85 regions had regional human rights ombudsmen with responsibilities similar to Lukin's; their effectiveness varied significantly.

The Presidential Council on Promoting the Development of Institutions of Civil Society and Human Rights, headed by Ella Pamfilova, promoted NGO concerns and worked to advance human rights in the country. The council was widely respected within the NGO community; however, it was limited in its capacity to address many human rights problems. In some notable cases, such as abuses to freedom of assembly during opposition demonstrations, advocating for easing regulations on NGOs, and election violations, Pamfilova provided effective intervention.

In January 2006 the 126-member Public Chamber of the Russian Federation began operation. The chamber was established by legislative mandate to channel public and civil society input into legislative decision-making. Some prominent human rights groups declined to participate in the chamber out of concern that the government would use it to increase control over civil society. The chamber employed some 30 committees to cover problems ranging from juvenile justice to anticorruption to philanthropy. Committees were intended to conduct public discussions on key issues, review draft laws, travel to the regions to promote the role of regional public chambers, conduct studies, and give nonbinding recommendations to the government and legislature.

Early in the year, the Public Chamber published a report on the state of civil society in the country in 2006. The report assessed the development of civil society but offered no information on the chamber's role in fostering civil society. The chamber was generally not considered effective as a check on the federal government.

Section 5 Discrimination, Societal Abuses, and Trafficking in Persons

The law prohibits discrimination based on race, gender, language, social status, or other circumstances; however, both governmental and societal discrimination persisted.

Women

Rape is illegal, and the criminal code makes no special distinctions (such as spousal rape) on the relationship between the rapist and the victim. Between January and November, 6,619 rapes and rape attempts were reported, a 19 percent decrease from the same period in 2006. However, according to NGOs, many women did not report rape or other violence due to social stigma and lack of government support. Rape victims can act as full legal parties to criminal cases brought against alleged assailants and seek compensation as part of a court verdict without initiating a separate civil action.

Members of the medical profession, including at hospitals and elsewhere, assisted women who were assaulted, which sometimes included identifying an assault or rape case. Doctors, however, were reluctant to provide testimony in court.

Spousal or acquaintance rape was not widely perceived as a problem by society or law enforcement. Women were unlikely to report cases of rape by persons they knew. Law enforcement and prosecutors held many of the same notions and reportedly did not encourage reporting or prosecution of such cases. A very small percentage of spousal or partner rape was reported to the court.

Domestic violence remained a major problem. The Ministry of Internal Affairs reported that during the year approximately 14,000 women were killed by their husbands, boyfriends, or other family members. The ministry also estimated that more than 2,700 men were killed by their wives or girlfriends whom they had beaten. Law enforcement authorities frequently failed to respond to incidents of domestic violence. Amnesty International estimated that approximately 36,000 women were beaten by a husband or partner every day. There were no official statistics on domestic violence, but officials estimate that there were more than 250,000 violent crimes committed against women every year. Because violence is frequently not reported, the real figures are impossible to ascertain.

There is no legal definition of domestic violence. The law prohibits battery, assault, threats, and murder, but most acts of domestic violence did not fall within the jurisdiction of the Prosecutor's Office. Victims of these crimes must prosecute such cases themselves, which was difficult to do without legal training or state assistance. Consequently, few cases were prosecuted, and there were few convictions. According to a 2005 survey, police frequently discouraged victims from submitting complaints, and the majority of cases filed were either dismissed on technical grounds or moved to a reconciliation process by a justice of the peace, with focus on preservation of the family, rather than punishment of the perpetrator. Civil law remedies for domestic violence included administrative fines and divorce.

NGOs reported improvements in several cities where they worked with police to support domestic violence victims; in some cities, this resulted in improved procedures for dealing with domestic violence.

There were over 600 government centers for social rehabilitation assistance and shelters serving various groups. It was unclear how many of these offered services for domestic violence victims. There were also about 25 crisis centers, 90 percent of which were run by NGOs. Crisis services were not focused exclusively on violence against women, although some did offer services to domestic violence victims, including temporary shelter. An informal informational network affiliated with the NGO National Center for Prevention of Violence "Anna" reported that 22 of the 170 organizations in its network closed, primarily due to lack of financing.

The organization and operation of a prostitution business is a crime, while selling sexual services is a lesser criminal administrative offense. Prostitution remained widespread in the country, and some observers noted that the country was a destination for sex tourism; police worked closely with counterparts from at least one foreign government to ensure the prosecution of sex tourists. There were reports of prostitutes bribing police and police violence against prostitutes. It was widely believed that police were involved in the protection of prostitution.

The law does not prohibit sexual harassment, which remained a widespread problem. NGOs operating hot lines reported that women routinely sought advice on the problem. The lack of legal remedies and limited economic opportunities caused many women to tolerate harassment.

Although the law states that men and women have equal rights and opportunities to pursue those rights, women encountered discrimination in employment. Job advertisements often specified sex and age groups, and some specified desired physical appearance as well as a preference for applicants open to intimate relations with their prospective supervisor. Employers often preferred to hire men to save on maternity and childcare costs and avoid the perceived unreliability that accompanied the hiring of women with small children. The labor market displayed gender discrimination in compensation, professional training, hiring and dismissal, and career promotion. Such discrimination was often very difficult to prove. The Federation of Independent Trade Unions of Russia stated that the gender differential in wages increased from 30 percent in 1998 to 35-40 percent in 2006. One study found that women earned 29 percent less than men in state-owned firms and 23 percent less in private firms.

Children

The government expressed its commitment to children's rights and welfare, but devoted limited resources to the welfare of children. Legislation does not provide adequate protection for children, and in practice abuses against children remained a problem.

Children have the right to free education until grade 11 (or approximately age 17). School is compulsory until age 15 or 16. According to UNICEF statistics, 93 percent of school-age children attended school. The highest level achieved by the majority of children was secondary education. While federal law provides for education for all children in the country, regional authorities frequently denied school access to the children of unregistered persons, including Roma, asylum seekers, and migrants.

Child abuse was a widespread problem, but the majority of child abuse cases were not subject to legal action. Children, particularly homeless children or orphans, were exploited in child pornography. Authorities viewed child pornography as a serious problem, and police and politicians have increasingly called for legislative improvements. Current laws against child pornography were inadequate to allow effective investigation and prosecution of pornography cases. The law lacks a definition of child pornography, does not criminalize the possession of child pornography, and the statute on the production and distribution of pornography was poorly drafted and seldom used. Criminal cases were often dismissed because of the lack of clear standards; when a suspect was convicted, the courts frequently imposed the minimum sentence, often probation. Relatively few child pornography cases were investigated and prosecuted, creating an environment where child pornography flourished. Nonetheless, the number of child pornography investigations increased fourfold in the past four years, reflecting increased police awareness of the problem.

The Moscow Human Rights Research Center estimated that approximately 50,000 children ran away from home annually to avoid domestic violence. The Moscow Helsinki Group indicated that each year approximately two million children under 14 years of age were victims of domestic violence. While there was some government attention to child abuse, it was generally not linked to the broader problem of domestic violence.

Estimates of the number of homeless children ranged from two million to five million. The Russian Statistics Committee (Rosstat) estimated that there were approximately 800,000 abandoned children in the country.

According to the Moscow Department of Social Security, 12 percent of street children who ended up in shelters had run away from orphanages or boarding schools. Law enforcement officials reportedly often abused street children, pinned the blame for otherwise unsolved crimes on them, and committed acts including extortion, illegal detention, and psychological and sexual violence against them. According to the Public Verdict Foundation, in 2005 prosecutors refused to bring charges in 80 percent of cases of alleged police misconduct involving street children; there was no information available on the situation during the year.

In October 2006 the Basmanniy Court of Moscow convicted three police officers of abusing and beating a 12-year-old boy in detention. The case was brought by the boy's parents with the assistance of Public Verdict lawyers. The officers were sentenced to three years in prison and ordered to pay the family \$4,080 (100,000 rubles) compensation. The officers were not allowed to work in law enforcement for four years.

Homeless children often engaged in criminal activities, received no education, and were vulnerable to drug and alcohol abuse. Some young girls on the streets turned to, or were forced into, prostitution, often to survive. According to Ministry of Internal Affairs' statistics, during the first six months of 2006-- the most recent for which data is available--over 90,000 criminal offenses were committed by minors or with minors' participation.

Trafficking in Persons

The law prohibits trafficking in persons; however, internal and external trafficking continued to be a substantial problem.

The scope of trafficking was difficult to quantify with reliable estimates, but observers believe it remained widespread. The country continued to be a source, destination, and place of transit for human trafficking; however, because of rapid economic growth, there has allegedly been a decrease in the number of citizens trafficked abroad. Women and children were usually trafficked for sexual exploitation, while men were trafficked into the country for construction or agricultural work. There were some cases of forced begging, i.e., persons compelled to beg through threats of force and violence, who turned their earnings over to traffickers. The International Labor Organization (ILO) estimated that one million illegal immigrants living in the country were victims of forced labor. According to the IOM, women were trafficked to almost 50 countries in North America, Europe, the former Soviet republics, the Middle East, and Asia. Women who were trafficked abroad and returned seldom reported their experiences to police because they feared social stigma and retaliation by traffickers.

In January police uncovered a mass grave in Nizhniy Tagil where local traffickers allegedly killed persons who refused to work as prostitutes; no information was available on the police investigation.

Traffickers typically targeted unemployed females between the ages of 14 and 45, with females between the ages of 15 and 25 being the primary targets, with promises of economic or educational opportunities abroad. Some victims knowingly agreed to become prostitutes without suspecting the severity of the conditions and abuse they would suffer. Traffickers targeted homeless children or children in orphanages for sexual exploitation. There were no reliable estimates of how many children were trafficked. The country has become a major producer and distributor of Internet child pornography, leading to confirmed cases of child sex trafficking and child sex tourism.

Criminal groups carried out most trafficking with the assistance of front companies, typically companies offering education or employment opportunities abroad, and established organized crime groups. Victims often surrendered their passports or other documentation to their employers. They threatened workers with deportation or prosecution if they demanded payment for their work. Traffickers often threatened to harm victims' families if they tried to escape. Traffickers typically used a front company--frequently an employment agency, travel agency, or modeling company--to recruit victims with promises of well-paying work overseas.

Trafficking and forced labor are punishable by a maximum of 15 years imprisonment, recruitment into prostitution by a maximum of eight years, organization of a prostitution business by a maximum of 10 years, and manufacture and distribution of child pornography by a maximum of eight years. Convicted traffickers may have their assets confiscated.

In 2006 the police opened more than 126 investigations of human trafficking, including more than 100 related to sex trafficking. Since January 2005, the government initiated witness protection to shield trafficking victims and their families from traffickers, but the program was rarely used. During the year the Ministry of Internal Affairs increased trafficking investigations by 50 percent and worked closely with foreign governments to assist international trafficking prosecutions.

Child pornography, mentioned above, was often connected with trafficking and remained a serious problem.

There were continued allegations that corrupt government officials facilitated trafficking. It was widely alleged that corrupt elements in the Ministry of Internal Affairs and other law enforcement bodies facilitated and, in some cases, controlled trafficking. Individual officials reportedly took bribes from traffickers in return for false documents and facilitating visa fraud. Law enforcement sources agreed that document fraud was often committed in the process of obtaining external passports and visas, but they were uncertain to what extent this involved official corruption rather than individual or organized criminal activity. There were reports of prosecutions of officials involved in such corruption.

NGOs engaged in antitrafficking efforts received varying degrees of support from regional and local governments. Some engaged local officials and law enforcement personnel, while others provided training to local crisis centers and hospital staff. For example, the Primorskiy Krai administration worked closely with antitrafficking NGOs in the Russian Far East to organize the international Stop Trafficking Now conference, while the St. Petersburg region supplied considerable assistance to a trafficking shelter and set up a working group of police, NGOs, and regional government to address the problem. Some local governments provided funding to human trafficking shelters. A Moscow shelter operated with assistance from local authorities and foreign funding.

While the government did not have a comprehensive trafficking prevention program, federal, regional, and municipal governments continued to sponsor events to combat trafficking. The government also sponsored events to raise general public awareness of the danger of trafficking. The Ministry of Foreign Affairs placed detailed warnings about employment and travel abroad on its Web site. Newspapers and NGOs reinforced these warnings. The ministry also developed internal guidance on assisting trafficking victims for consular officers abroad.

Persons with Disabilities

Several laws prohibit discrimination against persons with disabilities or mandate equal treatment of them; however, the government generally did not enforce these laws. Citizens with disabilities continued to face discrimination and were denied equal opportunity to education, employment, and access to social outlets. The situation for persons with disabilities has reportedly worsened since the passage in 2004 of a law that replaced government subsidies for such items as transportation and medicine with cash payments. Some affluent regions, such as Moscow, preserved benefits for persons with disabilities at preexisting levels, while most other regions provide a limited number of benefits such as free transportation.

The Ministry of Health and Social Protection estimated that there were 15 million persons with disabilities. In December 2006 the human rights ombudsman said that, in the previous ten years, over 120,000 persons became invalids as a result of military actions and war injuries. Persons with disabilities were generally excluded from the social and political life of their communities and isolated from mainstream society.

During the year police discovered and arrested a criminal ring that forced persons with disabilities to beg in the streets of Moscow.

The residents of institutions for adults with disabilities were mainly "graduates" of the institutions for children. Institutions often did not attempt to develop the abilities of the residents. Residents were frequently confined to the institutions and sometimes movement within the institutions was restricted. The use of psychotropic drugs as punishment was allegedly widespread. Conditions in the institutions were often poor, with unqualified staff and overcrowding.

Laws prescribe penalties for enterprises that fail to build ramps or other accessibility features but contain no enforcement mechanisms. Federal law on the protection of persons with disabilities requires that buildings be made accessible to the disabled, but authorities did not enforce the law and in practice most buildings were not accessible.

Approximately 90 percent of persons with disabilities were unemployed. Laws providing employment quotas exist at the federal and local levels; however, some local authorities and private employers continued to discourage persons with disabilities from working, and there was no penalty for failure to honor quotas. Human rights NGOs made some progress in persuading foreign companies in larger cities, including Moscow, to consider persons with disabilities as potential employees,

and the Moscow city government has reportedly encouraged employers to hire disabled persons. Overall, according to the NGO All-Russia Society of Disabled Persons, the number of persons with disabilities in the workforce declined from 72,500 in 2002 to 28,000 during the year. The NGO attributed this to the 2002 elimination of tax benefits which encouraged employment of persons with disabilities.

Authorities generally segregated children with disabilities from mainstream society through a system that institutionalized children until adulthood. Observers concluded that issues of children's welfare were often ignored, and little clear recourse to systemic problems of abuse existed. Human rights groups alleged that children in state institutions were poorly provided for and, in some cases, physically abused by staff members. "Graduates" of state institutions also often lacked the necessary social, educational, and vocational skills to function in society. According to a 2006 report by the Prosecutor General's Office, half of the more than 600,000 children with disabilities in state care lacked medicines, hearing aids, and wheelchairs.

There appeared to be no legal mechanism for contesting commitment to a facility for the disabled. The assignment of categories of disability to children with mental disabilities often followed them through their lives. The labels "imbecile" and "idiot," which were assigned by a commission that assesses children with developmental problems at the age of three, and which signified that a child was uneducable, almost always were irrevocable. Even the label of "debil" --slightly retarded-- followed an individual on official documents, creating barriers to employment and housing after graduation from state institutions. This designation was increasingly challenged in the case of children with parents or caregivers, but there were few advocates for the rights of institutionalized children.

Youths with disabilities not in institutions faced significant barriers to education, including lack of access to schools. Education authorities often tried to keep youths with disabilities out of school due to lack of special programs. At the same time, the "home program" for children with disabilities was highly inferior to school classes. The majority of teachers and administrators in schools and universities had little or no understanding of disability issues. Often parents of children without disabilities were averse to their children studying with children with disabilities.

NGOs cited some examples of courts ordering children with disabilities admitted to schools that initially refused to take them. For example, two children with disabilities in Petrozavodsk, Karelia, were denied permission to attend a preschool program because the preschool stated that it did not have the capacity to accommodate children with their disabilities. The Petrozavodsk court initially supported the preschool, but the children's parents prevailed in a rehearing in February, and the children were admitted to a different preschool, which was ordered to provide a satisfactory program. In a final decision on April 24, the Petrozavodsk court ruled that the children's right to education had been violated and the court ordered a local special school (at the time of the verdict, the children were of school age) to provide a satisfactory special education program for the children.

According to government reports, of approximately 450,000 school-age children with disabilities, approximately 200,000 did not receive any education. Of the approximately 250,000 who received an education, 140,000 attended regular schools, 40,000 studied at home, and 70,000 attended special schools. Because special schools comprised only 3 percent of all schools, most children with disabilities could not study in the community where they lived, were isolated from other members of the community, and received an inadequate education.

Persons with disabilities faced barriers to participation in political life, including inaccessible government buildings. The election laws contain no special polling-place accessibility provisions, and the majority of polling places were not accessible to persons with disabilities.

Government bodies charged with protecting human rights also protect the rights of persons with disabilities. These bodies have carried out a number of inspections in response to complaints from disability organizations and, in some cases, have subsequently appealed to the responsible agencies to remedy the situation. The human rights ombudsman has conducted inspections of homes for children with mental disabilities that disclosed severe violations of children's rights and substandard conditions.

National/Racial/Ethnic Minorities

The law prohibits discrimination based on nationality; however, minorities were subjected to frequent discrimination by government officials, and there continued to be a steady rise in societal violence and discrimination against minorities, particularly Roma, persons from the Caucasus and Central Asia, and dark skinned persons, as well as foreigners. Skinhead groups and other extreme nationalist organizations fomented racially motivated violence; the number of hate crimes increased. Racist propaganda was also a problem.

Federal and local law enforcement continued disproportionately targeting members of ethnic minorities. Police reportedly beat, harassed, and demanded bribes from persons with dark skin, or who appeared to be from the Caucasus region, Central Asia, or Africa.

In September 2006 a diplomatic dispute between Russia and Georgia resulted in a government-orchestrated campaign against the approximately one million Georgians living in Russia. Law enforcement officials were reportedly instructed to step up actions against ethnic Georgians, and approximately 4,000 ethnic Georgians were deported. Other discriminatory actions included raids on Georgian businesses, police demands for lists of Georgian students, and an interruption in transportation and postal links. Government and NGO human rights specialists criticized the actions against Georgians as illegal and "selective persecution." The campaign stopped abruptly during the year following criticism from President Putin.

Authorities in Moscow continued to subject dark-skinned persons to far more frequent document checks than others and frequently detained or fined them in amounts that exceeded legally permissible penalties. A 2006 study by the Open Society Justice Initiative found that, while persons of non-Slavic appearance comprised only 4.6 percent of the riders on the Moscow subway, they made up 50.9 percent of persons stopped by police at subway exits. At one station, those of non-Slavic appearance were 85 times more likely to be stopped by police.

Police often failed to record infractions against minorities or to issue a written record to the alleged perpetrators. Law enforcement authorities also targeted such persons for deportation from urban centers. In April 2006 Chechnya's

then prime minister stated that all temporary IDP accommodation centers in Chechnya should be closed. According to the UNHCR, five temporary accommodation centers across Chechnya were closed during the year. In 2005 an Institute for War and Peace report noted that police arrested illegal migrant workers from Central Asia, illegally took their money, then took them to the outskirts of Moscow instead of deporting them in order for police to pocket the cost of the deportation and leave the workers in Moscow for future arrests. This practice reportedly continued.

On March 23, authorities in Chudovo, Novgorod Oblast, carried out a district court ruling to demolish the homes of several members of the local Roma community. According to the court decision, the construction of the homes was unauthorized as there were no proper deeds of ownership for the houses or land.

Authorities previously bulldozed 37 houses in May and June 2006 that belonged to more than 200 Roma, including over 100 children, in the village of Dorozhnoe, Kaliningrad Oblast, and set fire to the ruins. Over 100 of the displaced Roma were forced to live in temporary shelters and were threatened with physical expulsion. Regional authorities began their eviction campaign by initiating court proceedings to have the Romani families' ownership of their homes declared illegal. According to observers, the proceedings violated fundamental standards of due process. In November 2006 the Open Society Institute's Justice Initiative filed a request for interim measures with the ECHR on behalf of 33 of the evicted.

In Bashkortostan authorities required applicants for new identification documents to state their ethnic origins contrary to the constitution, which states that "nobody shall be forced to identify and state their ethnicity."

Societal violence and discrimination on ethnic and racial grounds continued to be a serious, slowly increasing, and intractable problem. The government sent mixed messages – on the one hand officials made appeals for tolerance, on the other hand efforts on issues such as migration at times exacerbated the problem. Numerous racially motivated attacks took place

against members of minority groups and foreigners, especially those of Central Asian, Caucasian, or African ethnicity. During the year, the Moscow Bureau for Human Rights (MHRB) reported recording 230 xenophobic attacks and conflicts, in which 74 persons died and over 317 were injured. According to the NGO SOVA Center, xenophobic attacks killed 67 and injured 550 persons during the year, an increase from 54 killed and 466 injured in 2006; in 2005, the figures were 31 and 413, respectively. SOVA Center reported that there were 16 criminal convictions for hate crimes in 2005, and 28 during 2006. The Ministry of Internal Affairs reported that, through November, 14,921 crimes were committed against foreign citizens and persons without citizenship, a 4 percent increase over the same period in 2006. The ministry's report for January-November noted 327 crimes "of an extremist nature," although it did not specify its criteria or the specific crimes categorized under that general heading.

On February 16, a group of men attacked two Uzbeks in a St. Petersburg suburb, killing one, Fagret Naimov, and seriously injuring the other. The survivor informed investigators that the attackers said "let's beat up these black guys." Police arrested seven suspects on charges of murder and hooliganism. The Prosecutor's Office indicated that these attacks were likely racially motivated.

There were developments in apparently ethnically motivated killings reported in previous years.

On April 13, court hearings began in the case of the April 2006 killing of Grigoriy Marienkov, an 80-year-old Romani man, by approximately 20 youths in the Volgograd region. The attackers also beat members of Marienkov's family. Press reports indicated that police arrested six suspects, all between the ages of 17 and 20. Further information on the case was not available.

On February 21, a Moscow court approved the continued detention of Oleg Kostyryov and Ilya Tikhomirov in connection with the August 2006 bombing of the Cherkizovskiy market in Moscow that killed 13 persons and injured 53, many of whom were from the North Caucasus and Central Asia. The Moscow prosecutor's office charged the two with ethnically motivated murder; the suspects were also charged with the murder of a 17-year-old Armenian student.

There were no reports of results in the investigation into the September 2006 killing of Indian medical student Singh Nitesh Kumar in St. Petersburg. The investigation was allegedly ongoing in 2006, but local human rights groups reported that the medical school's administration and the St. Petersburg city government had been unresponsive.

A series of court cases were heard during the year on cases related to the ethnic rioting that took place in Kondopoga, Karelia, in September 2006. In December 2006 a court gave a former police major a four-year suspended sentence for "negligence leading to the death of two or more persons" for his poor response to a fight that led to the killing of two persons and sparked the rioting. In November 2006 a court gave 12 persons each a three-year suspended sentence for participating in the rioting. On March 27, a court sentenced two ethnic Russians to three-and-a-half years and eight months in prison, respectively, for instigating the fight that precipitated the rioting. At year's end court proceedings were ongoing for six ethnic Caucasians charged with murder, assault, or hooliganism. In November 2006 the Karelian prosecutor opened a criminal case accusing Alexander Potkin (also known as Alexander Belov), head of the Movement Against Illegal Immigration, for coming to Kondopoga and inciting the mob to violence. In May authorities closed the case for lack of evidence.

On June 19, St. Petersburg jurors found four persons guilty of racially based murder in the 2005 killing of Congolese student Roland Epassak and sentenced them to prison terms ranging from seven to 14 years. A St. Petersburg jury had acquitted the four in July 2006, but the Supreme Court reversed the verdict and returned the case for retrial. The men have appealed their conviction and sentence.

During the year there were a number of violent but nonfatal, attacks of apparent racial motivation in St. Petersburg. On February 4, students attacked a Cameroonian student and a Moldovan salesgirl on the St. Petersburg subway; the Prosecutor's Office acknowledged a racial motivation for the attacks. On May 3, police arrested three students in connection with these attacks. No information on the outcome of the case was available.

On December 11, persons armed with baseball bats and steel bars attacked 39 North Korean workers in a Moscow suburb injuring 16 of them, four seriously. Law enforcement attacks attributed the attack to "hooliganism."

In November 2006 the St. Petersburg city court sentenced three persons under the age of 18 to prison terms of two-and-a-half to three years for racially motivated attacks in April 2006 against students of Ghanaian, Chinese, and Palestinian heritage.

In July 2006 there were reports of a brawl in Khabarovsk between ethnic Russians and Chinese. Two Russians were admitted to a hospital with serious knife wounds.

In February 2005 approximately 400 members of the Romani community left the village of Iskitim, Novosibirsk Oblast, after a group of armed men attacked and burned a number of Romani houses there. According to NGOs, similar attacks took place in 2005 and 2004. Members of the Romani community indicated that, after those incidents, law enforcement and municipal authorities had done nothing to prevent a recurrence. Police eventually arrested seven suspects, and the Novosibirsk Regional Prosecutor's Office took over the investigation. The case reached court in March 2006, and there were reports that warrants were issued for nine other suspects.

Authorities opened investigations but made no arrests in the March 2006 stabbing of a nine-year-old girl, whose father was a native of Mali, in St. Petersburg; the 2005 attack on two Korean students in St. Petersburg; and the 2005 attack on a Chinese student in St. Petersburg. Authorities did not make information available on the progress of the investigations.

Skinhead violence continued to be a serious problem. Skinheads primarily targeted foreigners, particularly those from North Korea, China, and Uzbekistan and individuals from the Northern Caucasus, although they also expressed anti-Muslim and anti-Semitic sentiments. According to the Ministry of Internal Affairs, neofascist movements had approximately 15,000 to 20,000 members, of which over 5,000 were estimated to live in Moscow. According to the Moscow Bureau of Human Rights, there were approximately 70,000 skinheads in 85 cities. Skinhead groups were most numerous in Moscow, St. Petersburg, Nizhniy Novgorod, Yaroslavl, and Voronezh. On August 3, the St. Petersburg prosecutor's office released a report on extremist crime in the city, which reported five such crimes, including three murders or attempted murders of ethnic minorities.

On June 19, an unidentified female attacked Valentina Uzunova, a St. Petersburg lawyer and forensic expert on racially motivated crimes. Uzunova was not seriously injured and police categorized the crime as attempted robbery. Local human rights NGOs alleged the attack was linked to Uzunova's planned testimony against Vladislav Nikolskiy, on trial for inciting ethnic hatred.

In December 2006 a homemade bomb exploded outside the Moscow apartment of antifascist activist, Tigran Babadzhanian, injuring police who were trying to defuse it. His photograph had previously been posted on skinhead Web sites, and he had received death threats. The District Prosecutor's Office opened a criminal investigation for "hooliganism committed in a socially dangerous way" and identified three suspects from an extremist gang.

In December 2006 the case of the killing of antifascist activist Aleksandr Riukhin on the outskirts of Moscow in April 2006 was submitted to the courts for trial. Three attackers--two members of the Slavic Union and one member of the Format 18 gang, both ultra-right extremist groups--were detained, and Nazi material and literature were found at their residences. In June the three attackers were convicted of hooliganism, beating, and causing harm to health. The defendants were sentenced to prison terms ranging from four to six-and-a-half years. There was no news of prosecution or conviction for murder in the case.

On July 31, a jury in a St. Petersburg court convicted seven persons charged with the murder of young antifascist activist Timur Kacharava and the attempted murder of his friend, Maksim Zgibay. In 2005 a gang attacked the two men. The court found the defendants guilty of inflaming ethnic hatred and six of the seven guilty of hooliganism. Defendant Andrey Shabalin

was found guilty of murder and attempted murder. Their punishment ranged from a two-year suspended sentence to 12 years in prison. Shabalin's attorneys appealed, as did the prosecutors, who sought stiffer sentences. On November 1, the Supreme Court denied the appeal of the prosecutor's office.

In November 2006 a Moscow court convicted three men of racially motivated assault in the case of Zaur Tutov, the culture minister of Kabardino-Balkaria, who was badly beaten by skinheads in April 2006. Two of the men were sentenced to 18 months at a prison colony and the third received a one-year sentence.

In September 2006, in Belgorod, members of the far right-wing group, Belgorod National Corps, were found guilty of the 2005 assault on the Nikolaenko family. In the attack, the armed, masked youth gang of approximately 20 persons, shouting "kill the gypsies," threw incendiary devices into Nikolaenko's house. The owner of the house, his wife, and son were attacked as they fled into the yard. Police detained 11 persons, including two minors and a former student of the of the Ministry of Internal Affairs' Judiciary Institute, and charged them with grievous bodily harm by an organized group motivated by ethnic hatred, and organization of and participation in an extremist group. The group leaders, Maksim Sharov, Andrey Petrov, and Ilya Sutula, were sentenced to five, four, and three years' imprisonment, respectively. The other seven defendants received prison terms of 18 months to 33 months. One defendant received a suspended sentence after cooperating with investigators.

Police detained three skinheads in connection with the 2005 attack by four skinheads on Malian student Maigaaru Bakar; there was no report of any further action by authorities on the case.

There were indications that the authorities were increasingly willing to acknowledge racial, ethnic, or religious motivations for such criminal acts. During the year only 24 persons were convicted for committing ethnically or racially motivated crimes, compared to 109 convictions in 2006. In most cases the attackers wore skinhead attire or proclaimed nationalist slogans. During the year members of ethnic or racial minorities were the victims of beatings, extortion, and harassment by skinheads and members of other racist and extremist groups. Police investigations of such cases were frequently ineffective, and authorities were often reluctant to acknowledge the racial or nationalistic element in the crimes, often calling attacks "hooliganism." Many victims, particularly immigrants and asylum seekers who lacked residence documents recognized by police, chose not to report such attacks or experienced indifference on the part of police.

A May 2005 report by the European Roma Rights Center noted "alarming patterns" of human rights abuse of Roma in the country. The report stated that the media's frequent association of Roma with drug dealing provided the context for many of the human rights violations against them. It provided evidence of widespread police violence against Roma and noted that the abuse was rarely reported to higher authorities.

Muslims and Jews continued to encounter prejudice and societal discrimination, although it was often difficult to separate religious from ethnic discrimination. Human rights specialists noted that racist propaganda and racially motivated violence are punishable by law, but despite some improvement in law enforcement efforts, the law was employed infrequently.

The government had a mixed record combating the problem. Attempts at the national level to address xenophobia were limited to nonexistent; however there was evidence that officials were addressing the problem at a local level. For example, in Karelia, one year after the ethnic riots in Kodopoga, authorities attempted to generate dialogue among various ethnic and religious groups, and prosecutions on both sides of the riot were generally reported to be proceeding fairly.

According to NGOs, the St. Petersburg city administration appeared to have begun to take hate crimes more seriously, but law enforcement agencies did not do enough to address the issue, in part because they lacked the necessary resources and, in some cases, allegedly, because some working-level staff sympathized with the nationalistic causes.

In August 2006 Yuriy Belyayev was given a suspended sentence of one-and-a-half years for publishing an article directly encouraging his readers to assault persons from the Caucasus region. However despite his sentence, Belyayev led a demonstration in June against guilty verdicts for four men convicted of murdering a Congolese student in 2005.

In February 2006 a St. Petersburg court sentenced the self-proclaimed "foreign minister" Alexander Vtulkin of the group "Russian Republic" to one year in prison for inflaming racial hatred. In June 2006 he was released early. Russian Republic had posted on its Web site a posthumous death sentence on Nikolay Girenko, a hate-crime expert and senior researcher at the Museum of Anthropology and Ethnography at the Russian Academy of Sciences, who was killed in 2004 in his St. Petersburg apartment. The court also found Vtulkin guilty of posting an Internet death sentence on Governor Matvienko for opening St. Petersburg to Asian migrants.

Indigenous Persons

The law provides for support of indigenous ethnic communities, permits them to create self-governing bodies, and allows them to seek compensation if economic development threatens their lands. In some regions local communities organized to study and make recommendations regarding the preservation of indigenous cultures. Groups, such as the Buryats in Siberia and ethnic groups of the north (including the Enver, Tatarli, Chukchi, and others), continued to work actively to preserve and defend their cultures as well as the economic resources of their regions. Most asserted that they received the same treatment as ethnic Russians, although some groups believed they were not represented or were underrepresented in regional governments. The principal problems of indigenous persons in recent years included the distribution of necessary supplies and services, particularly in the winter for those who lived in the far north, and claims to profits from exploitation of natural resources.

There continued to be reports of pressure on members of the Finno-Ugric-Mari ethnic group. The Moscow Helsinki Group and International Helsinki Federation for Human Rights asserted that authorities prosecuted two activists in September 2006 on politically motivated charges for their involvement in the Mari national movement. One activist, Vitaliy Tanakov, who earlier in 2006 published a brochure about the Mari persons and their religious beliefs, was convicted in December 2006 of inciting ethnic, racial, or religious enmity and sentenced to 120 hours of labor. A second activist, Nina Maksimova, faced similar charges for helping to distribute the brochure.

A 2006 NGO report on the country's implementation over a five-year period of commitments under a Council of Europe convention noted that wider government use of authoritarian methods of rule; harsher migration laws and campaigns against illegal migration; increasing authority of law enforcement bodies; and reduction in government support for minority-language media and education had adversely affected national minorities.

Other Societal Abuses or Discrimination

Persons with HIV/AIDS often encountered discrimination. Federal AIDS law contains antidiscrimination provisions but was frequently not enforced. Human Rights Watch reported that HIV-positive mothers and their children faced discrimination in accessing healthcare, employment, and education. Persons with HIV/AIDS found themselves alienated from their families, employers, and medical service providers. In April 2006 the Moscow city Duma criticized the activities of foreign NGOs that fight HIV/AIDS for allegedly encouraging pedophilia, prostitution, and drug use among teenagers.

While homosexuality is not illegal, the gay community continued to suffer societal stigma and discrimination. Medical practitioners reportedly continued to limit or refuse their access to health services due to intolerance and prejudice. According to recent studies, male homosexuals were refused work due to their sexuality. Openly gay men were targets for skinhead aggression, which was often met with police indifference. A few gay rights organizations operated out of public view.

In May during violent attacks on gay rights activists, Moscow police enabled antigay demonstrators to disrupt a gay pride demonstration instead of protecting human rights and gay rights advocates.

Police did not investigate or take action against any of several hundred protesters that shouted threats and threw rocks, bottles, and eggs at participants in a lesbian, gay, bisexual, and transgender "open party" in Moscow in April 2006 or against any of approximately 100 protestors that gathered outside a gay club the next night and conducted themselves in a similar

Section 6 Worker Rights

a. The Right of Association

Although the law provides workers the right to form and join unions, in practice government policy and the dominant position of the Federation of Independent Trade Unions of Russia (FNPR) and some employers limited the exercise of this right. The FNPR reported that approximately 50 percent of the workforce was unionized, and approximately 90 percent of union members belonged to the FNPR (approximately 27.8 million members, down from 29 million in 2006). Three other unions had memberships of between 500,000 and one million persons. There were many smaller unions, but they were not formal or organized and did not provide membership statistics.

The FNPR and other trade union federations acted independently of the government at the federal level, but in some cases FNPR unions were affiliated with local political structures, giving the FNPR advantages over unions without political ties. FNPR unions frequently included management as part of the bargaining unit or elected management as delegates to its congresses.

Despite a separate law specifically governing trade unions, the Federal Registration Service stated that the provisions of the law implemented in 2006 that governs the creation and operation of NGOs also applies to unions. Specifically, trade unions must receive permission to register and submit program and financial reports to authorities. Their failure to do so can trigger a legal process to abolish the union. The government oversight agency has the right to attend union meetings and monitor all union activities.

The law prohibits antiunion discrimination, but management harassment of union leaders and employees continued to be a problem. In 2006 the FNPR registered five cases of illegal dismissal of union leaders, all of whom were reinstated by court decisions. Neither the International Labor Organization nor the FNPR characterized such harassment as a political or large-scale trend. While high-level officials and ministries generally were not antiunion, harassment occurred at the local level. Union leaders were sometimes followed by security services, detained for questioning by police, and subjected to heavy fines, losses of bonuses, and demotions. Unregistered unions faced operational constraints, such as difficulty in opening bank accounts and collecting fees. There were, however, fewer reports of employers using tax authorities or offices of the public prosecutor to put heavy pressure on unions by initiating falsified investigations, which often resulted in large decreases in union membership.

b. The Right to Organize and Bargain Collectively

The law recognizes the right of unions to conduct their activities without interference and the right to bargain collectively but also gives employers a strong role in labor relations. The law makes collective bargaining mandatory if either an employer or employees request it. The law obliges labor and management to enter into negotiations within seven days of such a request and sets a three-month time limit for concluding an agreement. Unresolved issues are to be included in a protocol of disagreement, which may be used to initiate a collective labor dispute. Negotiations were often slow and difficult. Employers were often reluctant to accept union requests for collective bargaining and did not provide financial reports (including base wages) to unions. According to the International Trade Union Confederation, the law specifies that company information on wages is a commercial secret. Lack of access to such information disadvantaged unions engaged in collective bargaining. According to the ILO, unions experienced the most difficulty engaging employers in collective bargaining in the trade, tourism, and agricultural sectors.

The law requires the designation of a majority union as the exclusive bargaining agent for workers at an enterprise, a provision that favors larger unions. The labor code also stipulates that there be only one collective agreement per enterprise, covering all employees, a provision that limits the ability of professional or "craft" unions (the majority of new unions in the country) to represent their members. Only an enterprise-level affiliate of a national trade union body may negotiate with the

employer, even if the majority union is an independent or craft union. An employer has the right to refrain from negotiating with trade unions whose membership does not comprise a majority of an enterprise's workers. Smaller unions have the right to send a representative to negotiations, but their participation depends on the majority union and the employer. Employers who tried to negotiate with smaller unions encountered difficulties, as demands were often contradictory and unstructured.

In 2006 the FNPR reported that approximately 88 percent of its enterprises had collective bargaining agreements. This figure did not include other agreements that may not have been registered with the Labor Ministry. The law states that collective agreements become effective upon signature, whether registered or not.

The law provides for the right to strike; however, this right remained difficult to exercise. Most strikes were considered technically illegal because they violated one or more of the exceedingly complex procedures governing disputes. A strike may be called at an enterprise only after approval by a majority vote at a conference composed of at least two-thirds of all personnel, including management.

The law specifies that a minimum level of essential services must be provided if a strike could affect the safety or health of citizens. Strikes are prohibited in the railway and aviation sectors, government and military agencies, at nuclear power stations, and in disaster assistance organizations. Workers in these sectors at times resorted to other forms of protest, such as rallies, days of action, or hunger strikes. Although the law prohibits reprisals for strikes, they frequently occurred and included threats of night shifts, denial of benefits, blacklisting, and firing. Strike actions were further discouraged by the ability of civil courts to order confiscation of union property to settle damages and losses to an employer if a strike is found to be illegal and not discontinued before the decision goes into effect. As a result labor actions were often organized by strike committees rather than by unions.

On June 7, at least two persons stabbed and beat local politician and chairman of the Kaliningrad branch of the independent Dockers' Union of Russia, Mikhail Chesalin, who was hospitalized with serious injuries. While local NGOs claimed the attack was motivated by Chesalin's longstanding dispute with the management of the dock, police treated the case as a simple assault.

There are no export processing zones.

c. Prohibition of Forced or Compulsory Labor

The law prohibits forced or compulsory labor; however, there were reports that such practices occurred. According to credible reports, approximately one million illegally employed migrants from other countries of the former Soviet Union were forced to work without pay because the firms that brought them into the country held their passports. There were also reports that women, children, and men were trafficked for commercial sexual exploitation and labor.

In previous years, there were reports that some of the several thousands of North Koreans in Russia worked in inhumane conditions and may have been exploited to help pay down North Korea's debt. However, there was no evidence that this practice continued during the year. While many North Koreans, Kyrgyz, Uzbeks, and Tajiks worked under difficult circumstances in Russia, they usually appeared to do so voluntarily and for wages that were high by home country standards.

There were reported incidents in previous years of military officers forcing soldiers under their charge to work for private citizens or organizations, often under abusive conditions.

The law prohibits forced or bonded labor by children; however, such practices reportedly occurred.

d. Prohibition of Child Labor and Minimum Age for Employment

While the law is intended to protect children from exploitation in the workplace and prohibits forced or compulsory labor, the government did not effectively implement laws and policies to protect children from exploitation in the workplace, as it did not consider child labor a social problem. There were reports that children were trafficked for sexual exploitation and labor.

While there have been no recent statistical studies, prosecutors from around the country stated that the child labor problem is worsening. However, the Federal Labor and Employment Service (FLES) and the Ministry of Internal Affairs, which are responsible for child labor matters, did not enforce the laws effectively. The law prohibits most employment of children under the age of 16 and regulates the working conditions of children under the age of 18, including prohibiting dangerous nighttime and overtime work. Children are permitted, under certain conditions and with the approval of a parent or guardian, to work at the age of 14. Such work must not threaten a child's health or welfare.

The FLES, part of the Ministry of Health and Social Development, is responsible for checking enterprises and organizations for violations of labor and occupational health standards for minors. In 2004, the last year for which statistics were available, approximately 8,300 cases of child labor violations were reported. Most serious violations of child labor and occupational health standards were believed to occur in the informal sector. Local police investigations only occurred in response to complaints.

Accepted social prohibitions against employing children and the availability of adult workers at low wages generally prevented widespread abuse of child labor. However, children working and living on the streets remained a problem and were at heightened risk of being trafficked.

e. Acceptable Conditions of Work

The monthly minimum wage, essentially an accounting reference for calculating transfer payments, increased to \$93.80 (2,300 rubles) on September 1, up from \$44.80 (1,100 rubles) in 2006. The amounts were not sufficient to provide a decent standard of living for a worker and family. Monthly subsistence wages have been set at the regional level since 2004 and averaged \$140 (3,436 rubles) in 2006. Approximately 15 percent of the population had incomes below the official subsistence minimum.

The law provides for a standard workweek of 40 hours with at least one 24-hour rest period and requires premium pay for overtime or work on holidays; however, workers complained that employers required them to work in excess of the standard workweek, abrogated negotiated labor agreements, and transferred them against their will.

Unlike previous years, nonpayment of wages has become much less of a problem. The law penalizes employers who paid their employees late or made partial payments and requires employers to pay two-thirds of a worker's salary if the worker remains idle by fault of the employer. Courts often ruled in favor of employees seeking payment of back wages, and collection, which had been difficult in previous years, improved. Courts often insisted that cases be filed individually, in contradiction to the Law on Trade Unions, thereby undercutting union attempts to include the entire membership in one case. Individually filed cases made for a lengthier process, one more difficult for the individual worker, and one that left them more exposed to possible retaliation.

Although the law establishes minimum conditions for workplace safety and worker health, the government did not allocate sufficient resources to enforce these standards effectively. According to the Center for Social and Labor Rights, approximately one-third of employees worked under unsafe conditions. In many cases workers wore little protective equipment in factories, enterprises stored hazardous materials in open areas, emergency exits were locked, and smoking was permitted near flammable substances. The labor code requires businesses employing more than 50 workers to establish a work safety division and create a work safety specialist position; the code includes procedures for investigating industrial accidents.

The law provides workers the right to remove themselves from hazardous or life-threatening work situations without jeopardy to their continued employment; however, the government did not effectively enforce this right. Many companies employing workers in hazardous conditions (such as the mining industry) awarded bonuses based on worker productivity, thereby encouraging workers to jeopardize their safety for higher salaries.

Statistics on safety violations and workplace accidents and deaths were not complete or reliable, and the risk of industrial accidents or death for workers remained high. Labor inspectors, injury compensation offices, and Rosstat collected limited information on workplace accidents. The State Labor Inspections bureau reported 4,514 occupation-related deaths in 2006, down from 4,604 in 2005. The International Labor Organization (ILO) cautioned that the number was under-reported by 70-90 percent. Accidents were rarely reported in small and medium-sized businesses, while large companies provided better reporting.

The law entitles foreign workers working legally in the country to the same rights and protections as citizens. Foreign workers residing and working illegally in the country are subject to deportation but may seek recourse through the courts. The FNPR estimated that during the year there were 11 million illegal workers in the country, most of whom were citizens of other countries of the former Soviet Union and were working for lower wages than Russian citizens and in generally poor conditions.

According to official statistics from the Ministry of Economic Development and Trade, one-third of salaries were unreported; unofficial estimates claimed that up to one-half of salaries were unreported.

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